



CHAPTER ccxxxviii.

An Act for incorporating and conferring powers on the A.D. 1903.
North Western Electricity and Power-Gas Company and
for other purposes. [14th August 1903.]

WHEREAS the erection of generating stations and works as hereinafter provided and the supply therefrom of electrical energy within the area of supply hereinafter defined and the manufacture and supply of power-gas for the purposes of motive power and heating but not of illumination within the same area would be of public and local advantage :

And whereas the persons in this Act named with others are willing at their own expense to construct such stations and works and undertake such manufacture generation and supply and it is expedient that they should be incorporated into a company (in this Act called "the Company") and that powers should be conferred on them for that purpose and for acquiring lands for the stations and works and generally for carrying out the objects and provisions of this Act :

And whereas plans describing the lands to be taken or used compulsorily for the purposes of this Act with a book of reference containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands were duly deposited with the clerks of the peace for the counties of Stafford and Denbigh and are in this Act referred to as the deposited plans and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and

A.D. 1903. Commons in this present Parliament assembled and by the authority
— of the same as follows :—

Short title. **1.** This Act may be cited as the North Western Electricity
and Power-Gas Act 1903.

DIVISION OF ACT INTO PARTS.

This Act is divided into Parts as follows :—

- Part I.—Preliminary.
- Part II.—General Purposes Lands &c.
- Part III.—Supply of Electrical Energy.
- Part IV.—Supply of Power-Gas.
- Part V.—Capital.
- Part VI.—Meetings and Appointment of Directors.
- Part VII.—Protective Provisions.
- Part VIII.—Miscellaneous.

PART I.

PRELIMINARY.

Incorporation of Acts.

2. The following Acts or portions of Acts (as far as they are applicable for the purposes of and are not varied by or inconsistent with the provisions of this Act) are incorporated with and form part of this Act (that is to say) :—

The Companies Clauses Consolidation Act 1845 and Part I. (relating to cancellation and surrender of shares) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts :

The Lands Clauses Acts :

The Gasworks Clauses Act 1847 (except the provisions with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit and with respect to the yearly receipt and expenditure of the undertakers and except any provisions which relate exclusively to the supply of gas for lighting purposes) and the Gasworks Clauses Act 1871 (except sections 11 and 12 and sections 24 to 33 and sections 35 and 36 and the Schedules).

Excepting certain provisions of Electric

3. The provisions of the Electric Lighting Act 1888 and the Electric Lighting (Clauses) Act 1899 which are contained in the sections thereof hereinafter mentioned shall not apply to the

Company or their undertaking anything in either of the said Acts A.D. 1903.
to the contrary notwithstanding (that is to say) :— Lighting

Sections 2 and 3 of the Electric Lighting Act 1888:

And sections 2 3 5 6 7 8 9 21 to 29 30 (so far as respects supply in bulk) 31 to 37 41 48 60 64 to 68 75 77 and 78 of the Schedule to the Electric Lighting (Clauses) Act 1899 and section 81 of the said Schedule shall not apply to any generating station or stations or works erected on any of the lands described in the First Schedule to this Act but except as aforesaid the provisions of the said Schedule are incorporated with and form part of this Act for the purposes of this Act relating to electrical energy.

4. The provisions of section 13 of the Electric Lighting Act 1882 and of section 12 of the Schedule to the Electric Lighting (Clauses) Act 1899 in so far as they restrict the breaking up of tramways or railways where laid across or along any highway on the level or of the roadway of or approaches to any bridge over any railway within the area of supply shall not apply to the Company.

5. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction :

The expression "the Company" means the Company incorporated by this Act :

The expression "the undertaking" means the undertaking by this Act authorised :

The expression “ the Electric Lighting Acts ” means the Electric Lighting Acts 1882 and 1888 and the Electric Lighting (Clauses) Act 1899 :

The expression "power-gas" means the producer gas commonly known as Mond gas and any development of Mond gas approved by the Board of Trade for the purposes of motive or other power heating or any other purpose to which such gas can be applied except illumination :

The expression "local authority" means with respect to each part of the area of supply the local authority for that part:

The expression "authorised distributor" means any local authority company body or person authorised by Act of Parliament or Provisional Order confirmed by Parliament to

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give a general supply of electrical energy within the area of supply or any part thereof :

The expression "authorised undertaker" means—

(1) Any authority authorised by any general or special Act to undertake or contract for the lighting of streets bridges or public places within any part of the area of supply as defined by this Act ;

(2) Any authorised distributor as defined by this Act :

The expression "plan" means a plan drawn to a horizontal scale of at least 1 inch to 88 feet and where possible a section drawn to the same horizontal scale as the plan and to a vertical scale of at least 1 inch to 11 feet or to such other scale as the Board of Trade may approve of for both plan and section together with such detail plan and sections as may be necessary :

The expression "daily penalty" means a penalty for each day on which any offence is continued after conviction.

Company
incorporated.

6. Thomas William Twyford Robert Heath Frank Rigby Herbert Minton Robinson Arthur Bailey John Harding John Henry Darby John Henry Gartside Alfred Seymour-Jones William Edward Rowcliffe and all other persons who have already subscribed to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purposes hereinafter mentioned and for those purposes shall be and are hereby incorporated by the name of "The North Western Electricity and Power-Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

PART II.

GENERAL PURPOSES LANDS &C.

General
purposes of
Company.

7. Subject to the provisions of this Act the Company may within the area of supply hereinafter defined generate use sell supply and distribute electrical energy and manufacture use supply sell and distribute power-gas and manufacture sell and deal in sulphate of ammonia and any bye-products or residuals of power-gas and may erect lay down improve maintain let or dispose of any buildings works machinery plant vessels producers retorts dynamos engines fittings mains pipes wires and other apparatus which may

be necessary or useful for those purposes or any of them and may acquire and work any patents relating to the generation storage supply production measurement transformation and distribution of electrical energy or power-gas or grant licences to use the same and generally may do all such acts and things as may be necessary or useful for or incidental to the purposes aforesaid and the carrying into effect of the purposes of this Act. A.D. 1903.

8. The Company may subject to the provisions of this Act enter upon take and use the lands or any part or parts thereof in the counties of Stafford and Denbigh shown on the deposited plans and described in the deposited book of reference and in the First Schedule to this Act and may use those lands or any portion thereof for the erection establishment and maintenance of a station or stations for generating electrical energy and manufacturing power-gas and converting any materials or residual products arising from or in the process of the generation or manufacture of electrical energy or power-gas and for all or any of the purposes of this Act. Lands for generating stations and other purposes.

9. Subject to the provisions of this Act the Company may manufacture acquire maintain and use and sell let on hire and otherwise dispose of electric power-gas and other mains storage and other batteries dynamos producers accumulators cables conductors service wires tubes pipes insulators meters distributing cut-out and other boxes switches transformers fittings motors and other apparatus for producing transmitting storing measuring regulating and distributing electrical energy or power-gas for public and private purposes or for converting the same into motive power heat or otherwise but as regards power-gas not for illumination and any other machinery apparatus and appliances necessary or useful for any of the purposes of this Act. Storage and distributing works.

10. If any omission misstatement or erroneous description shall have been made of any lands or of the owners lessees or occupiers of any lands described in the deposited plans or book of reference it shall be lawful for the Company after giving ten days' notice to the owners lessees and occupiers of the lands affected by such proposed correction to apply to two justices for the correction thereof and if it shall appear to such justices that such omission misstatement or erroneous description arose from mistake they shall certify the same accordingly and they shall in such certificate state the particulars of any such omission and in what respect any such matter shall have been misstated or erroneously described and Errors and omissions in plans &c. may be corrected by two justices.

A.D. 1903. such certificate shall be deposited with the clerk of the peace for the county within which such lands are situated and shall also be deposited with the clerks of the district councils within which districts such lands are situated and such certificate shall be kept by such clerks of the peace and clerks of the said district councils respectively along with the other documents to which it relates and thereupon such plans or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands in accordance with such certificate.

Persons empowered by Lands Clauses Acts to sell lands may grant easements &c.

11. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required by the Company for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to purchase lands by agreement.

12. The Company may for the purposes of this Act purchase and hold or take on lease (by agreement but not otherwise) in addition to the lands delineated on the deposited plans and described in the deposited book of reference any lands and hereditaments not exceeding in the whole fifty acres which the Company may from time to time require for the purposes of their undertaking.

Nothing in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any lands acquired under this section or authorise the Company to erect any station for generating electrical energy or power-gas or manufacturing any residual product upon any lands acquired under this Act other than on the lands referred to in the section of this Act of which the marginal note is "Lands for generating stations and other purposes."

Period for compulsory purchase of lands.

13. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act.

Restriction on taking houses of labouring class.

14.—(1) The Company shall not under the powers of this Act purchase or acquire in any borough or other urban district and elsewhere than in any borough or urban district any parish ten or more houses which on the fifteenth day of December last were

occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. A.D. 1903.

(2) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

(3) The expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them The expression "house" means any house or part of a house occupied as a separate dwelling.

15.—(1) It shall be lawful for the Company within the area of supply to lay down maintain repair alter and use pipes for conveying water and any materials matters or things used by them in or resulting from the process of generating or transforming electrical energy or manufacturing power-gas to or from any generating transforming or manufacturing station of the Company and the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall so far as applicable extend and apply to the laying down repairing altering or removing of pipes for such purposes. Power to lay
down pipes
for water &c.

(2) Where any pipe to be laid by the Company under the powers of this section crosses over or under or is situate within three feet of any mains pipes or other works of any company or authority supplying water or gas the same shall be laid down under the superintendence and to the reasonable satisfaction of the engineer of that company or authority as the case may be.

(3) The powers conferred upon the Company by this section shall not be exerciseable without the consent in writing of the local or other authority liable to make maintain and repair the roads and streets along which the Company propose to lay such pipes and any

A.D. 1903. such consent may be given subject to such conditions as the said local or other authority may deem it advisable to attach thereto and shall apply only to each application of the Company such consent not to be unreasonably withheld and if any question arises as to whether that consent is unreasonably withheld or not that question shall be decided by the Board of Trade.

Power to lay
mains and
pipes and to
open up
streets.

16. Subject to the provisions and restrictions of this Act and of the Acts incorporated herewith the Company may lay place maintain alter and remove mains pipes wires and other apparatus connected with the supply of electrical energy or power-gas in or under any street within the area of supply and may (so far as necessary for the purpose of this section) open break up and interfere with any such street or any sewer or drain or any gas or water mains or pipes or any electric pneumatic or other wires lines tubes pipes or apparatus :

Provided that nothing in this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section :

Provided also that the Company shall not in any way interfere with any electric pneumatic or other wires lines tubes pipes or apparatus of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Provision for
inspection by
Company of
plans of
sewers mains
pipes &c.

17. The Company may give to any local authority or company owning or controlling any sewer drain watercourse gas or water mains or pipes or any electric pneumatic or other wires lines tubes pipes or apparatus in or under any street within the area of supply in or under which the Company may desire to lay or place mains pipes or apparatus written notice requiring such local authority or company to produce for the inspection of the Company by their authorised officer any plans and sections in their possession showing the situation of every such sewer drain watercourse gas or water main or pipes wires lines tubes and apparatus as may belong to or be controlled by them respectively and every such local authority or company shall comply with the notice within one week from the date thereof and the Company by such officer may take copies of such plans and sections All expenses properly incurred by any such local authority or company under this section shall be paid by the Company.

Notice of
works with
plan to be

18. Where the exercise of any of the powers of the Company in relation to the execution of any works will involve the placing

of any works in under along or across any public street or public bridge the following provisions shall have effect:—

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served on
local autho-
rity.

- (A) One month before commencing the execution of the works (not being repairs renewals or amendments of existing works of which the character and position are not altered) the Company shall serve a notice on the local authority describing the proposed works together with a plan of the works showing the mode and position in which the works are intended to be executed and the manner in which it is intended that the street or bridge or any sewer drain or tunnel therein or thereunder is to be interfered with and shall upon being required to do so by the local authority give them any such further information in relation thereto as they desire :

No part of the month of August shall be included in calculating the above-mentioned period of one month :

- (B) The local authority may in their discretion approve any such works or plan subject to such amendments or conditions as may seem fit or may disapprove them and may give notice of that approval or disapproval to the Company :
- (C) Where the local authority approve any such works or plan subject to any amendments or conditions with which the Company are dissatisfied or disapprove any such works or plan the Company may appeal to the Board of Trade and the Board of Trade may inquire into the matter and allow or disallow the appeal and may approve any such works or plan subject to such amendments or conditions as seem fit or may disapprove them :
- (D) If the local authority fail to give any such notice of approval or disapproval to the Company within one month after the service of the notice upon them they shall have been deemed to have approved the works and plan :
- (E) Notwithstanding anything in this Act the Company shall not be entitled to execute any such works as above specified except so far as they may be of a description and in accordance with a plan which has been approved or is to be deemed to have been approved by the local authority or by the Board of Trade as above-mentioned but where any such works description and plan are so approved or to be deemed to be approved the Company may cause those works to be executed in accordance with the description and plan subject in all respects to the provisions of this Act :

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(F) If the Company make default in complying with any of the requirements or restrictions of this section they shall (in addition to any other compensation which they may be liable to make under the provisions of this Act) make full compensation to the local authority for any loss or damage which they may incur by reason thereof and in addition thereto they shall be liable for each default to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds. Provided that the Company shall not be subject to any such penalty as aforesaid if the court are of opinion that the case was one of emergency and that the Company complied with the requirements of this section so far as was reasonable under the circumstances :

(G) In this section the expression "public street" means a street dedicated to the public use and the expression "public bridge" means a bridge carrying a street dedicated to the public use.

As to streets
 not repair-
 able by local
 authority
 railways
 tramways
 and canals.

19. Where the exercise of the powers of the Company in relation to the execution of any works will involve the placing of any works in under along or across any street or part of a street not repairable by the local authority or over or under any railway tramway or canal the following provisions shall have effect unless otherwise agreed between the parties interested :—

- (A) One month before commencing the execution of the works (not being repairs renewals or amendments of existing works of which the character and position are not altered) the Company shall serve a notice on the body or person liable to repair the street or part of a street or the body or person for the time being entitled to work the railway or tramway or the owners of the canal (as the case may be) in this section referred to as "the owners" describing the proposed works together with a plan of the works showing the mode and position in which the works are intended to be executed and placed and shall upon being required to do so by any such owners give them any such further information in relation thereto as they desire :
- (B) Every such notice shall contain a reference to this section and direct the attention of the owners to whom it is given to the provisions thereof :
- (C) Within three weeks after the service of any such notice and plan on any owners those owners may if they think fit serve a requisition upon the Company requiring that any

question in relation to the works or to compensation in respect thereof and any other question arising upon the notice or plan shall be settled by arbitration and thereupon that question unless settled by agreement shall be determined by arbitration accordingly : A.D. 1903.

- (D) In settling any question under this section an arbitrator shall have regard to any duties or obligations which the owners may be under in respect of the street railway tramway or canal and may if he thinks fit require the Company to execute any temporary or other works so as to avoid any interference with any traffic so far as may be possible :
- (E) Where no such requisition as aforesaid is served on the Company or where after any such requisition has been served on them any question required to be settled by arbitration has been so settled the Company may upon paying or securing any compensation which they may be required to pay or secure cause to be executed the works specified in such notice and plan as aforesaid and may repair renew and amend them (provided that their character and position are not altered) but subject in all respects to the provisions of this Act and only in accordance with the notice and plan so served by them as aforesaid or such modifications thereof respectively as may have been determined by arbitration as hereinbefore mentioned or as may be agreed between the parties :
- (F) All works to be executed by the Company under this section shall be carried out to the reasonable satisfaction of the owners and those owners shall have the right to be present during the execution of the works :
- (G) When the repair renewal or amendment of any existing works of which the character or position is not altered will involve any interference with any railway or with any tramway over or under which those works have been placed the Company shall unless it is otherwise agreed between the parties or in cases of emergency give to the owners not less than twenty-four hours' notice before commencing to effect the repair renewal or amendment and the owners shall be entitled by their officer to superintend the works the reasonable cost of such superintendence to be paid by the Company to the owners and the Company shall conform to such reasonable requirements as may be made by the owners or that officer :

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(H) If the Company make default in complying with any of the requirements or restrictions of this section they shall (in addition to any other compensation which they may be liable to make under the provisions of this Act) make full compensation to the owners affected thereby for any loss or damage which they may incur by reason thereof and in addition thereto they shall be liable for each default to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds. Provided that the Company shall not be liable to any such penalty as aforesaid if the court are of opinion that the case was one of emergency and that the Company complied with the requirements of this section so far as was reasonable in the circumstances.

Street authority &c. may give notice of desire to break up streets &c. on behalf of Company.

20. Any local authority body or person for the time being liable to repair any street or part of a street or entitled to work any railway or tramway which the Company are empowered to break up for the purposes of this Act may if they think fit serve a notice on the Company stating that they desire to exercise or discharge all or any part of any of the powers and duties of the Company as therein specified in relation to the breaking up filling in reinstating or making good any streets bridges sewers drains tunnels or other works vested in or under the control or management of that local authority body or person and may amend or revoke any such notice by another notice similarly served.

Where any such local authority body or person (in this section referred to as "the givers of the notice") have given notice that they desire to exercise or discharge any such specified powers and duties of the Company then so long as that notice remains in force the following provisions shall have effect unless it is otherwise agreed between the parties interested :—

(A) The Company shall not be entitled to proceed themselves to exercise or discharge any such specified powers or duties as aforesaid except where they have required the givers of the notice to exercise or discharge those powers or duties and the givers of the notice have refused or neglected to comply with that requisition as hereinafter provided or in cases of emergency :

(B) In addition to any other notices which they are required to give under the provisions of this Act the Company shall not more than four days and not less than two days before the exercise or discharge of any such powers or duties so specified as aforesaid is required to be commenced serve a

requisition on the givers of the notice stating the time when that exercise or discharge is required to be commenced and the manner in which any such powers or duties are required to be exercised or discharged :

- (c) Upon receipt of any such requisition as last aforesaid the givers of the notice may proceed to exercise or discharge any such powers or duties as required by the Company subject to the like restrictions and conditions so far as they are applicable as the Company would themselves be subject to in that exercise or discharge :
- (d) If the givers of the notice decline or for twenty-four hours after the time when any such exercise or discharge of any powers or duties is by any requisition required to be commenced neglect to comply with the requisition the Company may themselves proceed to exercise or discharge the powers or duties therein specified in like manner as they might have done if such notice as aforesaid had not been given to them by the givers of the notice :
- (e) In any case of emergency the Company may themselves proceed at once to exercise or discharge so much of any such specified powers or duties as aforesaid as may be necessary for the actual remedying of any defect from which the emergency arises without serving any requisition on the givers of the notice but in that case the Company shall within twelve hours after they begin to exercise or discharge such powers or duties as aforesaid give information thereof in writing to the givers of the notice :
- (f) If the Company exercise or discharge any such specified powers or duties as aforesaid otherwise than in accordance with the provisions of this section they shall be liable for each offence to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds Provided that the Company shall not be subject to any such penalties as aforesaid if the court are of opinion that the case was one of emergency and that the Company complied with the requirements of this section so far as was reasonable in the circumstances :
- (g) All expenses properly incurred by the givers of the notice in complying with any requisition of the Company under this section shall be repaid to them by the Company and may be recovered summarily :

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(H) The givers of the notice may if they think fit require the Company to give them such security for the repayment to them of any expenses to be incurred by them under this section as may be agreed upon between them and the Company or in default of agreement as may be determined by arbitration. If the Company fail to give any such security within seven days after being required so to do or in case of difference after the delivery of the arbitrator's award they shall not be entitled to serve any further requisition upon the givers of the notice requiring them to exercise or discharge any powers or duties under this section until such security has been duly given :

Provided that nothing in this section shall in any way affect the rights of the Company to exercise or discharge any powers or duties conferred or imposed upon them by this Act in relation to the execution of any works beyond the actual breaking up filling in reinstating or making good any such street or part of a street or any such bridges sewers drains tunnels or other works or railway or tramway as in this section mentioned.

As to alteration of pipes wires &c. under streets.

21. The Company may alter the position of any mains pipes wires or apparatus being under any street or place authorised to be broken up by them which may interfere with the exercise of their powers under this Act and any local authority body or person may in like manner alter the position of any mains or pipes of the Company being under any such street or place as aforesaid which may interfere with the lawful exercise of any powers vested in that local authority body or person in relation to that street or place subject to the following provisions unless it is otherwise agreed between the parties interested :—

(A) One month before commencing any such alteration the Company or the local authority body or person (as the case may be) in this section referred to as "the operators" shall serve a notice on the local authority body or person for the time being entitled to the mains pipes wires or apparatus (as the case may be) in this section referred to as "the owners" describing the proposed alterations together with a plan showing the manner in which it is intended that the alterations shall be made and shall upon being required to do so by any such owners give them any such further information in relation thereto as they may desire :

- (B) Within three weeks after the service of any such notice and plan on any owners those owners may if they think fit serve a requisition on the operators requiring that any question in relation to the works or to compensation in respect thereof or any other question arising on such notice or plan as aforesaid shall be settled by arbitration and thereupon that question unless settled by agreement shall be determined by arbitration accordingly : A.D. 1903.
- (C) In settling any question under this section an arbitrator shall have regard to any duties or obligations which the owners may be under in respect of the mains pipes wires or apparatus and may if he thinks fit require the operators to execute any temporary or other works so as to avoid interference with any purpose for which the mains pipes wires or apparatus are used so far as possible :
- (D) Where no such requisition as in this section mentioned is served on the operators the owners shall be held to have agreed to the notice and plan served on them as aforesaid and in that case or where after any such requisition has been served on them any question required to be settled by arbitration has been so settled the operators on paying or securing any compensation which they may be required to pay or secure may cause the alterations specified in such notice and plan as aforesaid to be made but subject in all respects to the provisions of this Act and only in accordance with the notice and plan so served by them as aforesaid or such modification thereof respectively as may have been determined by arbitration as hereinbefore mentioned or as may be agreed between the parties :
- (E) At any time before any operators are entitled to commence any such alterations as aforesaid the owners may serve a statement on the operators stating that they desire to execute the alterations themselves and where any such statement has been served on the operators they shall not be entitled to proceed themselves to execute the alterations except where they have notified to the owners that they require them to execute the alterations and the owners have refused or neglected to comply with the notification as hereinafter provided :
- (F) Where any such statement as last aforesaid has been served on the operators they shall not more than forty-eight hours and not less than twenty-four hours before the execution of the alterations is required to be commenced serve a

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notice on the owners stating the time when the alterations are required to be commenced and the manner in which the alterations are required to be made :

- (G) Upon receipt of any such notice as last aforesaid the owners may proceed to execute the alterations as required by the operators subject to the like restrictions and conditions so far as they are applicable as the operators would themselves be subject to in executing the alterations :
- (H) If the owners decline or for twenty-four hours after the time when any such alterations are required to be commenced neglect to comply with the notice the operators may themselves proceed to execute the alterations in like manner as they might have done if no such statement as aforesaid had been served upon them :
- (I) All expenses properly incurred by any owners in complying with any such notice of any operators under this section shall be repaid to them by the operators and may be recovered summarily :
- (J) Any owners may if they think fit by any statement served by them upon the operators under this section require the operators to give them such security for the repayment to them of any expenses to be incurred by them in executing any alterations as above mentioned as may be agreed upon between such owners and operators or in default of agreement as may be determined by arbitration and where any operators have been so required to give security they shall not be entitled to serve a notice upon the owners requiring them to execute such alterations until such security has been duly given :
- (K) If the operators make default in complying with any of the requirements or restrictions of this section they shall (in addition to any other compensation which they may be liable to make under the provisions of this Act) make full compensation to the owners affected thereby for any loss damage or penalty which they may incur by reason thereof and in addition thereto they shall be liable for each default to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds :

Provided that the operators shall not be subject to any such penalty as aforesaid if the court are of opinion that the case was one of emergency and that the operators complied with the requirements of this section so far as was reasonable under the circumstances.

22.—(1) Where the Company require to dig or sink any trench for laying down or constructing any new gas mains (other than service pipes) or other works near to which any sewer drain watercourse defence or work under the jurisdiction or control of any local authority or any main pipe syphon electric line or other work belonging to any gas electric supply electric tramway or water company has been lawfully placed or where any gas electric supply electric tramway or water company require to dig or sink any trench for laying down or constructing any new mains or pipes (other than service pipes) or other works near to which any mains or pipes of the Company have been lawfully placed the Company or the gas electric supply electric tramway or water company (as the case may be) in this section referred to as “the operators” shall unless it is otherwise agreed between the parties interested or in the case of sudden emergency give to the local authority or to the gas electric supply electric tramway or water company or to the Company as the case may be (in this section referred to as “the owners”) not less than fourteen days’ notice before commencing to dig or sink such trench as aforesaid and those owners shall be entitled by their officer to superintend the work and the operators shall conform with such reasonable requirements as may be made by the owners or the officer for protecting from injury every such sewer drain watercourse defence main pipe syphon electric line or work and for securing access thereto and they shall also if required by the owners thereof repair any damage that may be done thereto.

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Laying of
mains near
sewers &c.
or gas or
water pipes
or electric
lines.

(2) Where the operators find it necessary to undermine but not alter the position of any main pipe electric line or work they shall temporarily support it in position during the execution of their works and before completion provide a suitable and proper foundation for it where so undermined.

(3) Any question or difference which may arise under this section shall be determined by arbitration.

(4) If the operators make default in complying with the requirements of this section they shall make full compensation to all owners affected thereby for any loss damage penalty or costs which they may incur by reason thereof and in addition thereto they shall be liable for each default to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds Provided that the operators shall not be subject to any such penalty if the court are of opinion that the case was one of emergency and that the operators complied with the requirements of this section so far

A.D. 1903. — as was reasonable under the circumstances or that the default in question was due to the fact that the operators were ignorant of the position of the sewer drain watercourse defence main pipe syphon electric line or work affected thereby and that that ignorance was not owing to any negligence on the part of the operators.

(5) For the purposes of this section the expression "gas company" shall mean any body or person lawfully supplying gas the expression "electric tramway company" shall mean any body or person working electric tramways under the powers of any Act or Provisional Order the expression "water company" shall mean any body or person lawfully supplying water or water power and the expression "electric supply company" shall mean any body or person supplying energy in pursuance of the Electric Lighting Acts.

As to route
for mains
and pipes.

23.—(1) Any mains pipes wires or other apparatus laid down by the Company under the powers by this Act granted under any street shall be laid in such line or route and in a trench of such dimensions and in such position as may be agreed between the Company and the road authority or as failing agreement shall be settled by the Board of Trade as hereinafter provided and the Company shall show on the plan of the works to be served on such road authority in accordance with the provisions of this Act and of the enactments incorporated with this Act the route proposed to be taken and the dimensions and position of the proposed trench.

(2) Where the road authority affected object to any proposed line or route on the ground that it would traverse the principal thoroughfares or busy streets of such road authority or be otherwise inconvenient and indicate an alternative route or deviation which in the opinion of the Board of Trade is reasonable such alternative route or deviation shall be adopted :

Provided nevertheless that the provisions of this subsection shall not take away or prejudicially affect the rights of the Postmaster-General under section 14 of the Schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of that section shall apply in respect of such alternative route or deviation as though it were the route originally proposed by the Company.

(3) The reasonable and proper costs charges and expenses incurred by any road authority in relation to any reference to the Board of Trade under this section shall unless the Board of Trade shall certify that the action of the road authority in the matter has been unreasonable be paid by the Company.

24. The consent of a rural district council as the local authority to the placing of electric lines above ground under section 14 of the Electric Lighting Act 1882 and paragraph (b) of section 10 of the Schedule to the Electric Lighting (Clauses) Act 1899 shall not be unreasonably withheld and if any question arises whether that consent is unreasonably withheld or not that question shall be decided by the Board of Trade.

A.D. 1903.
Overhead
wires.

When applying to the Board of Trade for their consent to the placing of any electric line above ground the Company shall give notice of such application to every company body or person owning or working any electric tramway or electric light railway which would be situate within ten yards of such electric line and before giving such consent the Board of Trade shall consider any objections or representations which such company body or person may offer and shall make such regulations as they think necessary for the protection of the works of such company body or person.

25. The area within which the Company may supply electrical energy and power-gas (in this Act called "the area of supply") shall be that portion of the county of Stafford lying north of the southern boundary lines of the rural districts of Tutbury Uttoxeter Stafford and Gnosall and inclusive of the above said districts that part of the county of Derby which lies to the north-west of the boundary between the unions of Chapel-en-le-Frith and Bakewell that portion of the county of Flint comprising the borough of Flint the urban districts of Buckley Connah's Quay Mold and Holywell and the rural districts of Holywell and Hawarden and that portion of the county of Denbigh comprising the borough and the rural district of Wrexham.

Area of
supply.

PART III.

SUPPLY OF ELECTRICAL ENERGY.

26. The powers of the Company for the supply of electrical energy under this Act shall be subject to the following provisions:—

Conditions
affecting
supply.

(1) Electrical energy shall be supplied under this Act only—

(A) To authorised undertakers ; and

(B) To persons requiring a supply for power :

(2)—(A) The electrical energy supplied to authorised undertakers may be used by them for lighting or other purposes and the electrical energy supplied to any person for power may be used by such person for lighting any premises on any part of which the power is utilised Provided that where

A.D. 1903.

electrical energy is supplied to any person for power within the area of supply of any authorised undertakers the quantity in Board of Trade units used by such person for such lighting shall not in any quarter of a year except with the consent in writing of the authorised undertakers exceed thirty per cent. of the total quantity in Board of Trade units supplied to such person but save as aforesaid the Company shall not supply electrical energy for lighting purposes ;

(B) Any electrical energy used by a person for lighting shall be supplied only through a separate meter and the local authority of the district in which the supply of electrical energy for power and lighting purposes is given may once in each quarter of a year inspect the meters and the Company shall at the request of such local authority produce the meter readings for their inspection and shall if required to do so verify the same ;

(c) If any person supplied by the Company with electrical energy shall use the same for lighting purposes contrary to the provisions of this Act the Company shall forthwith upon becoming aware thereof discontinue the supply for lighting purposes ;

(D) If the Company fails to discontinue the supply as aforesaid they shall for every such offence be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds and such penalty may be recovered by the authority or company owning the electric lighting undertaking within whose district such contravention occurs :

(3) The Company shall not supply electrical energy (except to authorised undertakers or to any railway or water company or proprietors or trustees of any canal or navigation for power) in any area which at the date of the passing of this Act forms part of the area of supply of any authorised distributors without the consent of those distributors which consent shall not be unreasonably withheld :

(4) If any question arises as to whether the consent of any authorised distributors is unreasonably withheld that question shall be determined by the Board of Trade The consent shall be deemed to be unreasonably refused or withheld if such authorised distributors are not willing and in a position to give the requisite supply upon reasonable terms and within a reasonable time and in considering what are reasonable terms and what is a reasonable time the Board of Trade shall amongst other things have regard

to the terms upon which and the time within which the Company are willing and in a position to give the supply : A.D. 1903.

- (5) If at any time after the passing of this Act any local authority company or person become authorised distributors in any area within the area of supply the Company shall be subject to any provisions which may be made by the Act or Provisional Order under which the distributors become authorised as to the taking over of any supply then given by the Company for use exclusively within the area of supply of the distributors or otherwise as to the powers of the Company to supply within that area and such provisions may be made in any such Provisional Order under the Electric Lighting Acts.

27. The Company shall upon being required to do so by any authorised undertaker give and continue to give to that undertaker at such point within the area of supply of such undertaker as he may reasonably require a supply of electrical energy and they shall furnish and lay such electric lines as may be necessary for the purpose of supplying to such undertaker at such point the maximum power with which such undertaker may be entitled to be supplied under this Act subject to the conditions following (that is to say) : —

Every such undertaker requiring a supply of electrical energy shall —

Serve a notice upon the Company specifying the point at which such supply is required to be given and the maximum power required to be supplied and the day upon which such supply is required to commence (not being an earlier day than a reasonable time after the date of the service of such notice having regard to the situation of the district and to the length of electric line required to be laid and plant required to be erected for affording such supply) ; and

Enter into a written contract with the Company (if required by them so to do) to continue to receive and pay for a supply of electrical energy for a period of at least seven years of such an amount that the payment to be made for the same shall not be less than twenty pounds per centum per annum on the outlay (excluding expenditure on generating plant and any electric line then laid) incurred by the Company in making provision for such supply.

A.D. 1903.

The Company may charge for a supply of electrical energy to such undertaker either by the actual amount of electrical energy so supplied or by the electrical quantity contained in the supply or by such other method as may be agreed between the Company and such undertaker.

If any difference arises under this section such difference shall be determined by a single arbitrator to be appointed on the application of either party by the Board of Trade.

Stated prices
for electrical
energy.

28. The prices to be charged by the Company for electrical energy shall not exceed those respectively stated in that behalf in the Second Schedule to this Act and such prices shall include the cost of transforming the energy supplied to such pressure as the undertakers or person supplied may reasonably require. Provided that the Company shall charge according to section I. of the said Schedule unless the consumer in the notice requiring the Company to give a supply request to be charged in accordance with section II. of the said Schedule :

Provided further that the Company shall grant to any such undertakers as favourable terms and conditions for the supply of electrical energy as those granted by the Company to any other authorised undertakers or persons whose circumstances are similar.

Arbitration
as regards
supply of
electrical
energy.

29. The Company shall give a supply of electrical energy to any person who requires a supply which may be given by this Act other than a supply in bulk upon that person entering into a binding agreement to take the electrical energy upon such terms as failing agreement shall be fixed by a single arbitrator appointed by the Board of Trade and in fixing such terms (including a minimum annual sum to be paid to the Company) the arbitrator shall have regard to the following amongst other considerations :—

- (1) The period for which the person to whom the supply is to be given is prepared to bind himself to take electrical energy :
- (2) The amount of electrical energy required and the hours during which the Company can be called upon to supply such electrical energy :
- (3) The capital expenditure in connection with the supply of such electrical energy :
- (4) How far capital expended in connection with such supply may become unproductive to the Company upon the discontinuance of such supply.

30. Any authorised undertaker or person supplied with electrical energy by the Company under this Act who is desirous of discontinuing to receive such supply shall give to the Company twelve months' notice in writing of their intention to discontinue to receive such supply. Such notice may be given so as to expire at the end of the period for which the undertaker or person has contracted to continue to receive and pay for such supply or at any subsequent date.

A.D. 1903.
 —
 Notice of
 discontinu-
 ance of
 supply of
 electrical
 energy.

31. The maximum power with which any such authorised undertaker or person shall be entitled to be supplied shall be of such amount as he may demand to be supplied with and which the Company are in a position to supply not exceeding what may be reasonably anticipated as the maximum consumption.

Maximum
 power.

If any difference arises between any such authorised undertaker or person and the Company as to what may be reasonably anticipated as the consumption of such authorised undertaker or person such difference shall be determined by a single arbitrator to be appointed by the Board of Trade.

32. The Board of Trade may on the application of the Company or of any person to whom the Company is supplying electrical energy under this Act or of any authorised undertaker appoint and keep appointed one or more competent and impartial person or persons to be an electric inspector or electric inspectors under this Act and the Board of Trade may prescribe the fees to be taken by any such inspector and those fees shall be accounted for and applied as may be directed by the Board of Trade.

Appoint-
 ment of
 electric in-
 spectors.

33. If any local authority within the area of supply shall at any time after the passing of this Act apply for an Act or Provisional Order to authorise them to generate supply or use electrical energy the Company shall not oppose such application except so far as may be necessary in order to secure the insertion in such Act or Order of clauses or amendments to protect their electric lines and works and with respect to any provisions which may be contained in any such Act or Order as to the taking over of any supply then given by the Company. Provided that nothing in this section shall prejudice the right of the Company to oppose any such application if the Company shall have entered into a binding agreement with such authority to afford to the whole area proposed to be dealt with by such authority a supply of energy for the same purposes and to the same extent as is proposed by such authority and if necessary to apply for powers in that behalf.

Company
 not to oppose
 applications
 by local
 authorities
 for Act or
 Provisional
 Order.

A.D. 1903.

Compensation for
damage by
fusion &c.

34. The Company shall make full compensation for any loss or damage which may occur to any mains pipes and apparatus by fusion or electrolytic action caused by the exercise of any of the powers of this Act conferred upon the Company.

PART IV.

SUPPLY OF POWER-GAS.

Obligation
of Company
to supply
power-gas.

35. The Company shall on being required so to do by the owner or occupier of any premises situate within the district of any local authority in which the Company have gas mains give and continue to give a supply of power-gas to such premises for any of the purposes for which the Company are authorised to supply power-gas and they shall furnish and lay any pipe that may be necessary for such purpose subject to the conditions following (that is to say) :—

The cost of so much of any pipe for the supply of power-gas to any owner or occupier as may be laid upon the property of such owner or in the possession of such occupier and of so much of any such pipe as may be laid for a greater distance than thirty feet from any gas pipe of the Company although not on such property shall be defrayed by such owner or occupier and such mains when laid shall become the property of the Company :

Every owner or occupier of premises requiring a supply of power-gas shall—

Serve a notice upon the Company at their office specifying the premises in respect of which such supply is required and the day (not being an earlier day than a reasonable time after the date of the service of such notice) upon which such supply is required to commence ; and

Enter into a written contract with the Company (if required by them so to do) to take not less than one million cubic feet per period of thirteen weeks and to continue to receive and pay for a supply of power-gas for a period of at least two years :

Provided that the Company shall not supply any person with power-gas unless such person contract for a supply of not less than one million cubic feet in a year nor shall the Company supply power-gas for use in dwelling houses hotels victualling houses shops places of worship infirmaries schools or museums within the

district or limits of supply of any authority or company lawfully supplying gas therein. A.D. 1903.

36. The Company may require any consumer of power-gas supplied by them to consume such power-gas by a proportional meter to be supplied and fixed by and at the expense of the Company instead of by a meter which is a legal meter within the meaning of the Sale of Gas Act 1859 and in every such case the provisions of this section shall apply in lieu of those of the said Act.

Supply of
power-gas
by meter.

An inspector under the Sale of Gas Act 1859 may at the request of any consumer of gas supplied by the Company by a proportional meter on giving not less than twenty-four hours' written notice to the Company of his intention examine and test any proportional meter within his jurisdiction as such inspector by which power-gas is supplied to such consumer and if necessary may remove the meter for that purpose doing as little damage as may be.

If upon such examination and testing it appears that the meter measures or registers incorrectly more than three per centum in favour of the Company the same shall not be refixed or used again unless and until altered and repaired at the expense of the Company so as to measure and register correctly and the fees and expenses of the inspector shall be borne and paid by the Company but if it appears that the meter measures or registers correctly or three per centum or less in favour of the Company then the fees and expenses of the inspector shall be borne and paid by the consumer.

Sections 21 and 22 of the Sale of Gas Act 1859 which relate to appeals from the decisions of inspectors shall apply for the purposes of this section as if they were with any necessary modifications re-enacted in this Act.

A proportional meter means a meter which measures and records a constant fraction of the total quantity passing through the meter.

37.—(1) The Company shall not supply power-gas for the purpose of illumination and no power-gas supplied by the Company shall be used for that purpose.

Power-gas
not to be
supplied for
illumination.

(2) If any person supplied by the Company with power-gas shall use the same for the purposes of illumination the Company shall forthwith upon becoming aware thereof discontinue the supply.

A.D. 1903.

(3) If the Company act in contravention of the provisions of this section they shall for every such offence be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds and such penalty may be recovered by the authority or company owning the gas undertaking within whose district such contravention occurs.

Charges for
supply of
power-gas.

38. The Company may charge and receive in respect of power-gas supplied by them such sums as may be agreed between them and the consumer being at a rate or price not exceeding threepence per one thousand cubic feet if the quantity taken by the consumer be not less than four million cubic feet per quarter of thirteen weeks and not exceeding fourpence per one thousand cubic feet if the quantity taken by the consumer be less than the above. Provided that if at any time it be proved to the satisfaction of the Board of Trade that the price of slack suitable for the purposes of the Company exceeds the price of six shillings per ton delivered at the works of the Company then the Board of Trade may by order authorise an increase in the price of power-gas beyond the above maximum by one-eighth of a penny per one thousand cubic feet for every one shilling by which the price of slack per ton shall exceed the price of six shillings per ton delivered at the works of the Company or by such other proportionate amount as the Board of Trade may determine and for such period in either case as the Board of Trade may fix with power to the Board to extend any such period so long as such excess of price continues :

Provided that every person entitled to demand a supply of power-gas from the Company shall be entitled to such supply on the same terms as any other person who is receiving a corresponding supply for a similar purpose in like circumstances and the Company shall not in making any agreement for affording a supply of power-gas show any undue preference to any person.

The Board of Trade may in order to ascertain the price of slack for the purposes of this section institute at the expense of the Company such inquiries as they may see fit.

Conditions
as to quality
of power-gas
supplied.

39.—(1) It shall not be lawful for the Company at any time to supply power-gas—

(A) Which contains more than fourteen per centum of carbon monoxide ; or

(B) Which does not possess a distinctive and readily perceptible smell.

(2) For any contravention of this section by the Company the Company shall be liable on summary conviction to a fine not exceeding fifty pounds. A.D. 1903.

(3) It shall be the duty of the inspectors of factories and the inspectors of mines to enforce the provisions of this section within their districts so far as respects factories workshops and mines inspected by them respectively and such inspectors shall for this purpose have all powers and authorities conferred by section 119 of the Factory and Workshop Act 1901 and by section 41 of the Coal Mines Regulation Act 1887 and section 17 of the Metalliferous Mines Regulation Act 1872 respectively :

Provided that no proceedings shall be taken against the Company by any such inspector in respect of any contravention of the provisions of this section discovered by him on any inspection of a factory workshop or mine unless he shall have given notice in writing to the Company at their principal office of such contravention and of the nature of the contravention as soon as possible after he discovers the same.

40. The Company shall cause to be provided at each of their generating stations in the area of supply before they shall supply power-gas from such generating station a testing place with apparatus therein for the purpose of testing— Testing
place for
power-gas.

(A) The thermal power of the power-gas supplied :

(B) The presence of carbon monoxide in the power-gas supplied.

The said apparatus shall be in accordance with such rules and regulations as may from time to time be prescribed by the Board of Trade and shall be so situated and arranged as to be used for the purpose of testing the thermal power of and the presence of carbon monoxide in the power-gas supplied by the Company and the Company shall at all times thereafter keep and maintain such testing place and apparatus in good repair and working order All expenses incurred by the Board of Trade in prescribing such rules and regulations shall be paid by the Company.

41. The local authority of any district within the area of supply may from time to time appoint and keep appointed a competent and impartial person to be a power-gas examiner to test the power-gas at the testing place at the generating station from which the supply in such district is derived and such examiner may there test the thermal power of and the presence of carbon monoxide in the power-gas supplied by the Company on any or every day Appoint-
ment and
powers of
power-gas
examiners.

A.D. 1903. between the hours of eight o'clock in the morning and six o'clock in the afternoon.

Two justices may appoint power gas examiner.

42. Where no such power-gas examiner is appointed or where the testing of the gas is imperfectly attended to by the local authority two justices on the application of consumers of the power-gas not being less than five in number may by order in writing appoint some competent and impartial person to be a power-gas examiner and such person may at any time within the hours aforesaid on producing the said order enter on the premises of the Company and there test the thermal power of and presence of carbon monoxide in the power-gas supplied by them.

Mode of testing power-gas.

43. Any test taken in pursuance of this Act shall be taken in accordance with the rules prescribed from time to time by the Board of Trade and all expenses incurred by the Board in prescribing such rules shall be paid by the Company.

Representation of Company.

44. The Company may if they think fit on each occasion of the testing of the power-gas by the examiner be represented by some officer but such officer shall not interfere in the testing.

Report of examiners.

45. The power-gas examiner shall on the day immediately following that on which the testing of the power-gas has been conducted make and deliver a report of the result of his testing to the local authority or justices by whom he was appointed and to the Company and such report shall be receivable in evidence.

Penalty for failure to supply power-gas of authorised quality.

46. If it shall be proved to the satisfaction of any two justices not being shareholders in the Company after hearing the parties that on any day the power-gas supplied by the Company is of less thermal power than it ought to be according to the provisions of this Act the Company shall in every such case forfeit and pay to the local authority or other persons making application for testing the power-gas such sum not exceeding twenty pounds as the justices shall determine.

Penalties not cumulative.

47. Penalties imposed on the Company for one and the same offence by several Acts of Parliament shall not be cumulative and for such purpose this Act and the Acts incorporated therewith shall be deemed several Acts.

Minimum heating value of power-gas supplied.

48. The power-gas supplied by the Company shall have a minimum heating value of 125 British thermal units per cubic foot at thirty-two degrees Fahrenheit and thirty inches of mercury pressure the product of combustion being cooled to sixty degrees Fahrenheit.

49. For the protection of local authorities the following provisions in regard to the laying of mains pipes or other apparatus for the supply of power-gas shall unless otherwise agreed between the Company and any such local authority apply and have effect (that is to say) :—

A.D. 1903.
Further provisions for protection of local authorities in regard to gas mains &c.

- (1) The Company shall not without the consent in writing of the local authority affected lay or place any mains pipes or other apparatus above the surface of any street within the area of supply nor shall they without the like consent lay or place any mains pipes or other apparatus in under along or above any part of any highway within the area of supply intended for the exclusive use of foot-passengers except for the purpose of connecting consumers' premises with the mains of the Company nor shall they without the like consent open break up or interfere with any sewer or drain of any such road authority :
- (2) The Company shall not without the written consent of the local authority affected open or break up at any one time a greater consecutive length than one hundred yards of any street or public footpath nor shall such openings or breakings up be carried out without leaving a clear space of a quarter of a mile between consecutive openings or breakings up unless with the like written consent :
- (3) The Company shall not without the written consent of the local authority affected in any way during the process of laying or placing their mains pipes and apparatus or during any subsequent alteration or repair thereof stop up impede or obstruct the public traffic passing along any street or public footpath for more of the said street or public footpath than is equivalent to one half of the width of such street or public footpath respectively :
- (4) The consent of the local authority affected in respect of any of the matters hereinbefore referred to shall not be unreasonably withheld :
- (5) The mains and distribution pipes of the Company shall be so laid as not to unnecessarily interfere with the sewers water gas or electric supply mains of any such local authority and shall be so constructed that the upper surface of the Company's said mains and distribution pipes shall throughout their entire length where they pass under the streets and public footpaths in the area of supply be not less than 2 feet 6 inches below the surface of such streets and footpaths :

A.D. 1903.

(6) If any difference shall arise under this section such difference shall be settled by an arbitrator to be appointed by the Board of Trade on the application of either of the parties in difference.

Board of
Trade in-
quiry.

50.—(1) If the Company shall at any time be desirous of manufacturing supplying selling and distributing within the area of supply any development of Mond gas they shall give notice to the Board of Trade of their desire together with information as to the nature of the development.

(2) Thereupon the Board of Trade shall appoint a competent and impartial person as referee to hold a public local inquiry in the area of supply and to report to the Board his opinion of the proposals of the Company.

(3) The Company shall give such notice of the time and place of the local inquiry as may be required by the Board of Trade so that all local authorities within the area of supply and all persons interested may have an opportunity of being heard either for or against the proposals of the Company.

(4) The referee shall hear all such persons and shall report the effects of their evidence and his opinion thereon to the Board of Trade and the Board shall have power either to give (with or without modifications or additions) or to withhold their approval of the proposals of the Company and shall communicate their decision to the Company and to all local authorities appearing on the inquiry.

(5) The remuneration of the referee shall be fixed by the Board of Trade and shall as well as the expenses of all necessary notices and of providing a place for the inquiry be paid by the Company.

Byelaws by
Company as
to power-gas.

51. The Company may from time to time make alter and repeal byelaws for preventing the abstraction waste or misuse of power-gas supplied by them and for preventing any fraudulent or wrongful interference with any fittings engines machinery or apparatus or any meters or other instruments and may attach to the breach of any such byelaws penalties not exceeding five pounds for any single offence but such byelaws shall not be of any force until they have received the approval of the Board of Trade.

Entry for
examination
of power-gas
machinery
&c.

52. The Company may by their agents officers servants and workmen at all reasonable hours enter any lands or buildings supplied by them with power-gas for the purpose of examining repairing or replacing any engines machinery meters or other

apparatus supplied or let by them making reasonable compensation to all persons injured by the exercise of the powers of this section. A.D. 1903. —

53. Nothing in this Act contained shall prejudice or affect the right of any consumer of power-gas supplied by the Company to recover damages from them for the failure on the part of the Company to supply power-gas. Failure to supply power-gas.

54. Subject and without prejudice to the rights of the Company under the agreement set out in the Third Schedule to this Act nothing in this Act contained shall be construed as entitling the Company to any monopoly or exclusive right to supply gas for the purposes of motive power and heating within the area of supply. No gas monopoly to be created.

55. Nothing in this Act contained shall exempt the Company from the provisions of any general Act relating to the manufacture or supply of power-gas passed before or after the commencement of this Act or from any regulations which may be made under any such general Act. Provision as to general Acts relating to power-gas.

56. The agreement a copy whereof is set forth in the Third Schedule to this Act is hereby confirmed and made binding on the Company as if the Company were party thereto in the place of John Sturgeon and William Edward Rowcliffe. Confirmation of scheduled agreement.

PART V.

CAPITAL.

57. The capital of the Company shall be one million five hundred thousand pounds in one hundred and fifty thousand shares of ten pounds each. Capital.

58. The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share is paid in respect thereof. Shares not to be issued until one fifth paid.

59. One fifth of the amount of a share shall be the greatest amount of a call and two months at least shall be the interval between successive calls and three fifths of the amount of a share shall be the utmost aggregate amount of the calls made in any year upon any share. Calls.

60. If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate or his tutor or curator bonis shall be a sufficient discharge to the Company. Receipt in case of persons not sui juris.

A.D. 1903.

Power to
divide
shares.

61. Subject to the provisions of this Act the Company with the authority of three fourths of the votes of the shareholders present in person or by proxy at a general meeting of the Company specially convened for the purpose may divide any shares in their capital into half shares of which one shall be called "preferred half share" and the other shall be called "deferred half share" but the Company shall not divide any share under the authority of this Act unless and until not less than sixty per centum upon such share has been paid up and upon every such division fifty per centum upon the entire share shall be carried to the credit of the deferred half share (being the whole amount payable thereon) and the residue to the credit of the preferred half share.

Dividends on
half shares.

62. The dividends which would be payable on any divided share if the same had continued an entire share shall be applied in payment of dividends on the two half shares in manner following (that is to say) first in payment of dividend after such rate not exceeding six pounds per centum per annum as shall be determined once for all at a general meeting of the Company specially convened for the purpose on the amount for the time being paid up on the preferred half share and the remainder if any in payment of dividend on the deferred half share and the Company shall not pay any greater amount of dividend on the two half shares than would have been payable on the entire share if the same had not been divided.

Dividend on
preferred
half shares
to be paid
out of profits
of year only.

63. Each preferred half share shall be entitled out of the profits of each year to the dividend which may have been attached to it by the Company as aforesaid in priority to the deferred half share bearing the same number but if in any year ending the thirty-first day of December there shall not be profits available for the payment of the full amount of dividend on any preferred half share for that year no part of the deficiency shall be made good out of the profits of any subsequent year or out of any other funds of the Company.

Half shares
to be regis-
tered and
certificates
issued.

64. Forthwith after the creation of any half shares the same shall be registered by the directors and each half share shall bear the same number as the number of the entire share certificate in respect of which it was issued and the directors shall issue certificates of the half shares accordingly and shall cause an entry to be made in the register of the entire shares of the conversion thereof but the directors shall not be bound to issue a certificate of any half share until the certificate of the existing entire share be delivered to them to be cancelled unless it be shown to their

satisfaction that such certificate is destroyed or lost and on any A.D. 1903.
 certificate being so delivered up the directors shall cancel it.

65. The terms and conditions on which any preferred half share or deferred half share created under this Act is issued shall be stated on the certificate of each such half share. Terms of issue to be stated in certificates.

66. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the forfeiture of shares for non-payment of calls shall apply to all preferred half shares created under the authority of this Act and every such preferred half share shall for that purpose be considered an entire share distinct from the corresponding deferred half share and until any forfeited preferred half share shall be sold by the directors all dividends which would be payable thereon if the same had not been forfeited shall be applied in or towards payment of any expenses attending the declaration of forfeiture thereof and of the arrears of calls for the time being due thereon with interest. Forfeiture of preferred half shares.

67. No preferred half share created under the authority of this Act shall be cancelled or be surrendered to the Company. Preferred half shares not to be cancelled or surrendered.

68. The several half shares under this Act shall be half shares in the capital of the Company and every two half shares (whether preferred or deferred or one of each) held by the same person shall confer such right of voting at meetings of the Company and (subject to the provisions hereinbefore contained) shall confer and have all such other rights qualifications privileges liabilities and incidents as attach and are incident to an entire share. Half shares to be half shares in capital.

69. When any sum not less than two hundred thousand pounds part of the capital of the Company shall have been subscribed under contract binding the parties thereto their heirs executors and administrators for the payment of the several sums in such portion of capital by them respectively subscribed it shall be lawful for the Company to put in force the powers of this Act in relation to the compulsory taking of land for the purposes of this Act and until seventy-five thousand pounds of the said sum of two hundred thousand pounds shall have been subscribed as aforesaid the Company shall not exercise any of the powers of this Act in reference to any street road or bridge The deposit with the Board of Trade of a statutory declaration by two of the directors and the secretary of the Company that the said sum of two hundred thousand pounds has been subscribed as aforesaid shall be sufficient evidence thereof. Portion of capital to be subscribed before compulsory powers put in force.

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Power to
borrow.

70. The Company may in respect of the capital of one million five hundred thousand pounds by this Act authorised borrow on mortgage of the undertaking any sum or sums not exceeding in the whole the sum of five hundred thousand pounds and of the said sum of five hundred thousand pounds they may borrow a sum of fifty thousand pounds in respect of each one hundred and fifty thousands pounds of the said capital. Provided that no part of any such sums of fifty thousand pounds shall be borrowed until the whole of the portion of the capital in respect of which the borrowing is hereby authorised to be made shall have been issued and accepted and one half fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 (before he so certifies) that the whole of the portion of the said capital in respect of which it is proposed to borrow has been issued and one half thereof fully paid up and upon the production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof.

For appoint-
ment of a
receiver.

71. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Debenture
stock.

72. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this Act or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Application
of moneys.

73. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable.

PART VI.

A.D. 1903.

MEETINGS AND APPOINTMENT OF DIRECTORS.

74. The first ordinary meeting of the Company shall be held within six months after the passing of this Act. First ordinary meeting.

75. The number of directors shall be nine but the Company may vary the number provided that the number be not less than five nor more than twelve. Number of directors.

76. The qualification of a director shall be the possession in his own right of not less than one hundred shares. Qualification of directors.

77. The quorum of a meeting of directors shall be three unless the number of directors exceeds nine when the quorum shall be five. Quorum.

78. Thomas William Twyford Robert Heath Frank Rigby John Harding Henry Dennis John Henry Gartside Alfred Seymour-Jones Wallace Charles Houstoun and one other person to be nominated by them or the majority of them and consenting to such nomination shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act. First directors.

79. At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act (or nominated as aforesaid) or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act (or nominated as aforesaid) being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act. Election of directors.

PART VII.

PROTECTIVE PROVISIONS.

80. For the protection of the Shropshire Union Railways and Canal Company (in this section referred to as "the Shropshire Union Company") the following provisions shall unless otherwise For protection of Shropshire Union Railways and

A.D. 1903. agreed between the Company and the Shropshire Union Company
Canal Com. apply and have effect (that is to say):—
pany.

- (1) The Company shall not in the exercise of any of the powers of this Act enter upon acquire interfere in any way with or injure or carry any main pipe wire or other work over along or across any canal reservoir lock aqueduct bridge culvert feeder towing path embankment or other work or property of the Shropshire Union Company or any road repairable by them and shall not in any way impede the navigation of any canal of that company or the traffic to from or along the same or the towing path thereof without in every case the previous written consent of that company :
- (2) All works in any way affecting the canal works or property of the Shropshire Union Company or any road repairable by them shall be executed by the Company under the superintendence of and to the reasonable satisfaction of the engineer of the Shropshire Union Company and in accordance with plans sections and specifications to be previously submitted to and approved by him :
- (3) If and whenever the Company in executing the works and exercising the powers by this Act authorised and conferred shall injure or damage any canal work or property of the Shropshire Union Company that company may make good the injury or damage and recover from the Company all expenses thereby incurred :
- (4) If and as often as at any time hereafter the Shropshire Union Company shall have occasion to alter repair raise or rebuild any canal bridge aqueduct culvert or work belonging to them upon over under through along across or by the side of which any main pipe wire or other work may be carried or laid by the Company any alteration of such main pipe wire or other work that may in the opinion of the engineer of the Shropshire Union Company be necessary in connection therewith shall be made and the main pipe wire or other work shall be replaced by and at the expense of the Company but no such altering repairing raising or rebuilding shall be commenced except in cases of emergency until twenty-eight days after notice of the intention of the Shropshire Union Company in that behalf shall have been given by the Shropshire Union Company to the Company and if the Company fail or neglect to alter such main pipe wire or other work the engineer of the Shropshire Union Company may make such alterations thereof as he

may consider necessary and the Shropshire Union Company may recover from the Company all expenses of and consequent upon such alterations as or by way of ascertained damages and the Shropshire Union Company shall not be liable to make compensation for any damages loss or injury occasioned by any alteration of such pipe or pipes : A.D. 1903.

- (5) If any dispute or difference shall arise with reference to the provisions of this section or arising thereout the same shall be referred to an arbitrator to be appointed by the Board of Trade on the application of the Shropshire Union Company or the Company.

81. The word "road" where used in this section shall be deemed to mean any principal thoroughfare or busy street or bridge over which any district council in the county of Flint (in this section called "the district council") shall have jurisdiction or for the repair of which they may be liable which is or may be affected by or under the provisions of this Act. For protection of district councils in Flintshire.

In executing the works and exercising the powers by this Act authorised the following provisions shall have effect unless otherwise agreed on in writing between the district council and the Company (that is to say) :—

- (1) Any mains which shall be constructed or laid in upon across or alongside any bridge under the jurisdiction of or repairable by the district council or any arch connected therewith shall be constructed or laid in upon across or alongside such bridge and arches in such manner as may be agreed on between the Company and the district council or as failing agreement may be settled by arbitration as hereinafter provided and the Company may notwithstanding anything in this Act or in the Electric Lighting Acts construct lay down erect and maintain such mains accordingly :
- (2) All works of or connected with the laying down of any mains along any road repairable by the district council or over any bridge under the jurisdiction of or repairable by the district council shall be so executed as not to stop or unreasonably interfere with the traffic of such road or bridge and all such works shall be proceeded with and completed with all possible despatch :
- (3) The Company shall pay to the district council the reasonable cost in relation to the examination of any plan served on them in accordance with this Act :

A.D. 1903.
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- (4) Nothing in this Act nor in the Electric Lighting Acts shall in any way limit or affect the powers of the district council to divert widen raise or improve any road or to remove alter widen raise or renew any bridge or the approaches thereto in alongside or near to which any mains of the Company are laid or carried in the same manner as they might have done if this Act had not been passed without making any compensation to the Company for any expense or loss to which the Company may be put in consequence of the reasonable exercise of such powers. Any alteration of the position of any mains of the Company necessitated by the diversion widening raising and improvement of such road or the removal alteration widening raising or renewal of such bridge shall be effected by and at the expense of the Company and within such reasonable period as shall be required by the surveyor of the district council and if in order to avoid interruption to the supply of electrical energy or power-gas by the Company it is necessary to do so the Company may temporarily carry their mains overhead or at the side of any such road bridge or approaches in such manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the district council. Provided that before such diversion widening improvement removal alteration raising or renewal of any such road or bridge shall be commenced the district council shall give one month's notice in writing to the Company of their intention to carry out such works and the district council shall afford at the cost of the Company reasonable facilities for temporarily carrying mains along the road or across the bridge so as not to interrupt the continuous supply of electrical energy or power-gas :
- (5) The district council shall not except in the case of their negligence be liable to any claim for damages in respect of any injury which may be caused to the gas mains or pipes of the Company laid at a less depth than 2 feet 6 inches (measured from the top of the pipe) or to the electric pipes or wires of the Company through the use by the district council or their agents of a steam roller scarifier or other similar appliance upon any road or bridge or through the reasonable exercise of any rights functions powers or privileges vested or to be vested in the district council :

- (6) If owing to the abandonment of the undertaking or any part thereof any mains laid under the powers of this Act under any road or bridge repairable by the district council shall for the space of three years be disused and such disuser be proved to the satisfaction of the Board of Trade the said Board may if they think fit by order sanction the removal of such mains and the district council may (subject however to any agreement between the district council and the Company providing for the removal of such mains by the Company) forthwith remove the same with all reasonable care and the Company shall pay to the district council the reasonable cost of such removal and of the reinstatement of the said road or bridge in which the same was laid and if the Company fail to pay such cost within one month after the ascertainment of and application for the same the district council may without any previous notice to the Company (but without prejudice to any other remedy which they may have for the recovery of the amount) sell and dispose of the materials of the mains so removed either by public auction or private sale and for such sum or sums and to such person or persons as they think fit and may out of the proceeds of such sale pay and reimburse themselves the reasonable cost of such removal and reinstatement of the said road or bridge and the cost of the sale and the balance (if any) of the proceeds of the sale shall be paid over by the district council to the Company :
- (7) If any road repairable by the district council is broken up by the Company for the purposes of their undertaking or any bridge culvert drain pipe or other property of the district council is damaged by the Company the Company shall repair such road bridge culvert drain pipe or other property to the reasonable satisfaction of the district council and if the same is not so repaired the district council may cause the necessary repairs to be done and may charge the costs against the Company and the same shall be a debt due from the Company to the district council :
- (8) The rights or obligations conferred or imposed by this section shall be in addition to and not in substitution for any rights or obligations conferred or imposed by the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Clauses) Act 1899 and the Gasworks Clauses Act 1847 or by this Act :
- (9) Notwithstanding anything in this Act contained if any difference arise between the Company and the district

A.D. 1903.

A.D. 1903.

council touching this section or anything to be done or not to be done thereunder such difference shall be settled by an engineer to be appointed by the Board of Trade on the application of either of the parties in difference.

For protec-
tion of Great
Central
Railway
Company.

82. For the protection of the Great Central Railway Company (hereinafter referred to as "the Great Central Company") the following provisions shall apply:—

- (1) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Act upon across under or adjoining or in any way affecting the railways canal lands and property now or hereafter belonging to or used or occupied by the Great Central Company or the bridges approaches viaducts stations or other works or any level crossings over the railways or the bridges under or over any canal of the Great Central Company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the Great Central Company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing or in case of difference as may be determined by arbitration in the manner hereinafter provided:
- (2) All such works shall be done by and at the expense of the Company except as in this section otherwise provided who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the Great Central Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company Provided always that should the Great Central Company elect so to do where any mains pipes apparatus or other works require to be laid under their canal or under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Company:
- (3) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railway or canal bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or canal or at to or from any station thereon:

- (4) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid in under or adjoining any railway bridge level crossing embankment cutting approach viaduct station canal land works or property of the Great Central Company the Company shall make compensation to the Great Central Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided : A.D. 1903.
- (5) If the Great Central Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands railways or canals or to alter or repair their railways canals bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or laid the Great Central Company may on giving to the Company twenty-eight days' notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be the sole judge then on giving as long a notice as possible divert support or carry the said works of the Company across over or under their lands railways canals bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works Provided that such works shall be done subject to the reasonable satisfaction of the engineer of the Company and without unduly interfering with the supply of electrical energy and power-gas by the Company :
- (6) Any additional expense which the Great Central Company may reasonably and properly incur in widening or altering their railways canals or works by reason of the existence of any electric lines of the Company across or under the same shall be paid by the Company :
- (7) In the event of any of the telegraphic telephonic or electrical signal communications of the Great Central Company being at any time injuriously affected by induction or otherwise from the electric lines of the Company the Company shall with all possible despatch at their own expense execute or do such remedial works as may be necessary for the protection of the Great Central Company

A.D. 1903.

and in case of any delay by the Company in executing the said remedial works the Great Central Company may themselves by their duly authorised officers and servants enter upon the lands and premises of the Company and execute the said remedial works and may recover the cost of the same from the Company in any court of competent jurisdiction :

- (8) The Company shall pay to the Great Central Company all costs damages and expenses incurred by them by reason of such injurious affection :
- (9) Any dispute or difference which may arise between the Great Central Company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Central Company and the Company or either of them.

For protection of
Derbyshire
and Stafford-
shire County
Councils.

83. The following provisions for the protection of the county councils of the counties of Derby and Stafford respectively (each of which is in this section called "the county council") and the inhabitants of the said counties shall (notwithstanding anything in this Act contained) unless otherwise agreed in writing between the county council and the Company apply and have effect :—

- (1) The Company shall not in the construction of the works by this Act authorised without the previous consent in writing of the county council under the hand of their clerk raise lower or divert any main road vested in the county council nor shall the Company without such consent as aforesaid interfere with the structure of any county or hundred bridge or approach repairable by or under the control of the county council :
- (2) All mains pipes wires or other works to be laid or constructed in along or across or in any way affecting any such road bridge or approach shall be constructed and laid under the superintendence if the same be given and to the reasonable satisfaction of the surveyor of the county council (in this section referred to as "the county surveyor") and in such position as he shall by writing under his hand direct and in accordance with plans and sections to be approved by him in writing before the commencement of the work and the Company shall in executing any such work conform

to all reasonable requirements of the county surveyor and shall pay to the county council any special expenses incurred by them in relation to such superintendence approval and requirement: A.D. 1903.

- (3) No electric lines shall be placed above ground along or across any such road bridge or approach without the consent in writing of the county council and which consent may be given or withheld at their absolute discretion:
- (4) All works shall be executed so as not to stop or more than (in the opinion of the county surveyor) is absolutely necessary for the purpose to impede or interfere with the traffic over or along any such road bridge or approach and the Company shall not without the consent of the county surveyor open or break up at any one time a greater consecutive length than one hundred yards nor shall such openings or breakings up be carried out without leaving a clear space of a quarter of a mile between consecutive openings or breakings unless with the like consent:
- (5) The Company shall during the progress of the works take all necessary steps at their own expense for protecting the public using any such road bridge or approach from injury and shall be liable for and indemnify the county council against all damage that may be incurred consequent upon their neglect or omission to provide such protection and the Company shall also be liable for all damages that may be incurred by the county council consequent upon any defects in any of the mains pipes wires or other works of the Company:
- (6) On completion of the works the Company shall reinstate to the reasonable satisfaction of the county surveyor such roads bridges and approaches and shall repay to the county council all reasonable expenses of and incident to the maintenance and repair of the roadway and footway for such period (not being more than twelve months from the proper reinstatement thereof) as there shall be any subsidence in the surface thereof caused by such works:
- (7) The Company shall on demand pay to the county council the reasonable costs which the county council may incur in the repair and reinstatement of so much of any such road including the roadway over any such bridge and approach upon or in which any mains pipes wires or other works are laid as may be injured or damaged by reason of the traffic

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being concentrated thereon during the construction alteration or repair of the said mains pipes wires or other works or any part or parts thereof :

- (8) The county council shall not be liable for any claim for damages in respect of any injury which may be caused to any mains pipes wires or other works belonging to the Company through the reasonable and proper use by the county council of any steam roller :
- (9) Nothing in this Act contained shall in any way limit or affect the powers of the county council to divert improve widen or reconstruct any such road or to remove alter widen or rebuild any such bridge or approach in alongside or near to which such mains pipes wires or other works are laid in the same manner as they might have diverted improved removed altered widened reconstructed or rebuilt any such road bridge or approach if this Act had not been passed without making any compensation to the Company for any expense or loss to which the Company may be put in consequence of the exercise by the county council of such powers and in the event of any such road bridge or approach in alongside or near to which the mains pipes wires or other works are laid being diverted improved removed altered widened reconstructed or rebuilt as aforesaid the Company shall at their own expense and within such reasonable time as the county surveyor may prescribe alter the position of such mains pipes wires or other works and replace the same to the satisfaction of the county surveyor Provided that before such diversion improvement removal alteration widening reconstruction or rebuilding of any such road bridge or approach shall be commenced the county council shall (except in case of emergency) give one month's notice in writing to the Company of their intention to carry out such works and shall afford all reasonable facilities for temporarily carrying the mains pipes wires or other works along such road or across or under the stream so as not to interrupt the continuous supply of electrical energy or power-gas :
- (10) The Company shall free of charge supply to the county council in each year a copy of the map and section to be made and corrected as mentioned in section 60 of the Schedule to the Electric Lighting (Clauses) Act 1899 so far as the same relates to the counties of Derby or Stafford

respectively and the Company shall forthwith after commencing to supply power-gas under this Act cause a map to be made of the area of supply and shall cause to be marked thereon the line and the depth below the surface of all their then existing mains and other underground works and shall once in every year cause that map to be duly corrected so as to show the then existing underground works and shall free of charge supply to the county council in each year a copy of such map :

- (11) If owing to the abandonment of the undertaking or any part thereof any mains pipes wires or other works laid in pursuance of the powers of this Act under any such road bridge or approach shall for the space of three years be disused and such disuser be proved to the satisfaction of the Board of Trade the said Board may if they think fit by order sanction the removal of such mains pipes wires or other works and the county council may (subject however to any agreement between them and the Company) forthwith remove the same with all reasonable care and the Company shall pay to the county council the reasonable cost of such removal and of the reinstatement of such road bridge or approach in which the same was laid and if the Company fail to pay such cost within one month after the ascertainment of and application for the same the county council may without any previous notice to the Company (but without prejudice to any other remedy they may have for the recovery of the amount) sell and dispose of the materials of the mains pipes wires and other works so removed either by public auction or private contract and for such sum or sums and to such person or persons as they think fit and may out of the proceeds of such sale pay and reimburse themselves the reasonable cost of such removal and reinstatement of such road bridge or approach and the cost of the sale and the balance (if any) of the proceeds of the sale shall be paid over by the county council to the Company :
- (12) The Company shall in addition to their liability under section 77 of the Schedule to the Electric Lighting (Clauses) Act 1899 as incorporated with this Act be answerable for all accidents damages and injuries happening through or resulting from the act or default of the Company their contractors or servants in relation to power-gas and shall save harmless the county council their officers and servants

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from all damages and costs in respect of such accidents damages and injuries :

- (13) If any difference shall arise between the county council and the Company touching anything to be done or not to be done under the provisions of this section such difference shall be settled by an arbitrator to be appointed by the Board of Trade on the application of either of the parties in difference.

For protec-
tion of main
roads and
county
bridges.

84. For the protection of corporations county councils and local and other authorities (in this section referred to as "the road authority") having control of main roads or county bridges and the length of roadway adjacent thereto (in this section referred to as "the main road") within the area of supply of the Company the following provisions shall unless otherwise agreed between the Company and any such road authority apply and have effect (that is to say) :—

- (1) Nothing in this Act contained shall tend to lessen or control any right power or authority now vested in the road authority for altering amending or diverting any main road repairable by the road authority which may be affected by the works of the Company but all such rights powers and authorities shall remain in as full force as if this Act had not been passed and the road authority shall not be liable to make any compensation whatever for any damage or injury to the works of the Company by the altering amending or diverting any such main road or any portion thereof Provided that in altering amending or diverting any main road or any part thereof nothing shall be done to impede or interfere with the said works for any greater length of time than shall be necessary for the execution of the works of alteration amendment and diversion and before commencing such alteration amendment and diversion twenty-eight days' notice shall (except in cases of emergency arising from subsidences and then as long as is possible before commencing the work) be given to the Company by the road authority and the road authority shall afford to the Company all necessary and reasonable temporary facilities for enabling them to carry on the works by this Act authorised during such alteration amendment or diversion :

- (2) The Company shall on demand pay to the road authority the reasonable costs which the road authority may incur in the repair and reinstatement of so much of any main road

under which the mains pipes wires or apparatus of the Company are laid as may be injured or damaged by reason of the traffic being concentrated thereon during the construction alteration or repair of the said mains pipes or apparatus or any part or parts thereof Provided nevertheless that such repairs and reinstatement may on the request of the Company but subject to the approval of the road authority be executed by the Company :

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- (3) The Company shall maintain the parts of any main road affected by the works by this Act authorised for such period (not being more than twelve months from the date of the efficient restoration thereof) as there shall be any subsidence in the surface thereof caused by such works :
- (4) If any county bridge repairable by the road authority upon or along which any mains pipes wires or apparatus of the Company are laid be altered or rebuilt by the road authority the road authority may require the Company to alter temporarily or permanently any such mains in such manner as the circumstances of the case may reasonably require :
- (5) All works affecting any main road shall be executed under the superintendence and to the reasonable satisfaction of the road authority's surveyor and the Company shall pay all reasonable expenses to which the road authority is put on account of such superintendence :
- (6) The Company shall not except in the case of negligence on the part of the road authority be entitled to claim damages or compensation from the road authority for any injury to be caused to the Company's gas mains or pipes laid to a less depth than two feet six inches (measured from the top of the pipe) nor to the Company's electric pipes or wires by the ordinary use of any steam roller belonging to the road authority upon any main road repairable by the road authority under which such mains pipes or wires are or shall be laid :
- (7) If any difference shall arise under this section such difference shall be determined by a single arbitrator to be appointed by the Board of Trade on the application of either of the parties in difference.

85. Notwithstanding anything in this Act contained the Company shall not without the consent in writing of William Robert Parker-Jervis take use or in any way interfere with the lands (A) described in the First Schedule to this Act.

For protection of W. R. Parker-Jervis.

A.D. 1903.

For protec-
tion of Lon-
don and
North West-
ern Railway
Company.

86. The following provisions for the protection of the London and North Western Railway Company (in this section referred to as "the North Western Company") shall apply and have effect and be binding upon the Company :—

(1) In constructing laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes wires apparatus or other works in the exercise of the powers contained in this Act upon across under or adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the North Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the North Western Company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the North Western Company and only according to such plans and in such position and manner as shall be submitted to and shall be previously reasonably approved by him in writing or in case of difference as may be determined by arbitration in the manner hereinafter provided :

(2) All such works shall be done by and at the expense of the Company who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the North Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company Provided always that should the North Western Company elect so to do where any mains pipes wires or apparatus require to be laid under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Company :

(3) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon :

(4) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations

and matters aforesaid or the bursting leakage or failure of any such mains pipes wires apparatus or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station land works or property of the North Western Company the Company shall make compensation to the North Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided : A.D. 1903.

- (5) The Company shall acquire only such an easement across over or under any of the railways works or property of the North Western Company as may be necessary for constructing or maintaining any of the works of the Company and shall pay to the North Western Company for any such easement to be acquired by them such sum either annual or otherwise as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement and for the purposes of such arbitration the easement so to be taken shall be deemed to be lands so far as respects the proceedings for the acquisition thereof and also for the purposes of such arbitration :
- (6) If the North Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or laid the North Western Company may on giving to the Company twenty-eight days' notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be the sole judge then on giving as long a notice as possible divert support or carry the said works of the Company across over or under their lands railways bridges or works at any other point in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works :
- (7) Any dispute or difference which may arise between the North Western Company and the Company with reference to

A.D. 1903.
—

the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the North Western Company and the Company or either of them.

For protec-
tion of Mac-
clesfield
Committee.

87. For the protection of the Macclesfield Committee (in this section referred to as "the committee") the following provisions shall apply:—

(1) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Act upon across under or adjoining or in any way affecting the railway lands and property now or hereafter belonging to or used or occupied by the committee or the bridges approaches viaducts stations or other works or any level crossings over the railway of the committee the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the committee and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing or in case of difference as may be determined by arbitration in the manner hereinafter provided:

(2) All such works shall be done by and at the expense of the Company except as in this section otherwise provided who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the committee or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company. Provided always that should the committee elect so to do where any mains pipes apparatus or other works require to be laid under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Company:

(3) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railway bridges level crossings approaches viaducts stations works lands or

property and so as to cause no interruption to the passage or conduct of traffic over the committee's railway or at to or from any station thereon: A.D. 1903.

- (4) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid in under or adjoining any railway bridge level crossing embankment cutting approach viaduct station land works or property of the committee the Company shall make compensation to the committee in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided:
- (5) If the committee at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railway or to alter or repair their railway bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or laid the committee may on giving to the Company twenty-eight days' notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be the sole judge then on giving as long a notice as possible divert support or carry the said works of the Company across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works Provided that such works shall be done subject to the reasonable satisfaction of the engineer of the Company and without unduly interfering with the supply of electrical energy and power-gas by the Company:
- (6) Any additional expense which the committee may reasonably and properly incur in widening or altering their railway or works by reason of the existence of any electric lines of the Company across or under the same shall be paid by the Company:
- (7) In the event of any of the telegraphic telephonic or electrical signal communications of the committee being at any time injuriously affected by induction or otherwise from the electric lines of the Company the Company shall with all possible despatch at their own expense execute or do such

A.D. 1903.

remedial works as may be necessary for the protection of the committee and in case of any delay by the Company in executing the said remedial works the committee may themselves by their duly authorised officers and servants enter upon the lands and premises of the Company and execute the said remedial works and may recover the cost of the same from the Company in any court of competent jurisdiction :

- (8) The Company shall pay to the committee all costs damages and expenses incurred by them by reason of such injurious affection :
- (9) Any dispute or difference which may arise between the committee and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the committee and the Company or either of them.

For protec-
tion of Bux-
ton Urban
District
Council.

88. For the protection of the Buxton Urban District Council (hereinafter referred to as "the council") the following provisions shall unless otherwise agreed between the Company and the council have effect :—

- (1) Notwithstanding anything in this Act contained the Company shall not except for the purposes of effecting any unavoidable repairs to their mains pipes wires or other apparatus break up or interfere with any streets under the jurisdiction of the council during the months of June July August and September :
- (2) Such of the provisions of the section of this Act the marginal note whereof is "Obligation of Company to supply power-gas" which prohibit the supply of power-gas for use in private dwelling-houses shall be extended so as to prohibit the supply of such gas in hotels hydropathic establishments and boarding houses :
- (3) The section of this Act the marginal note whereof is "For protection of Derbyshire and Staffordshire County Councils" shall apply and have effect as if the council were one of the councils named therein.

For protec-
tion of cor-
porations of
Longton

89. For the protection of the respective mayors aldermen and burgesses of the boroughs of Longton Burslem and Stoke-upon-Trent and the county borough of Hanley (as it now exists or may

be extended by any Act passed during any of the next three A.D. 1903.
ensuing sessions of Parliament) and of the Fenton and Tunstall Burslem and
Urban District Councils the following provisions shall in addition Stoke-upon-
to any other provisions in this Act apply and have effect unless Trent county
otherwise agreed between the Company and the said mayors borough of
aldermen and burgesses and the said urban district councils (that Hanley and
is to say):— urban district
councils of
Fenton and
Tunstall.

- (1) In this section the expression "the corporation" means each of the said mayors aldermen and burgesses and each of the said councils and the expression "the borough" means each of the said boroughs the said county borough (as it now exists or may be extended as aforesaid) and each of the said urban districts :
- (2) No main shall be of a greater internal diameter than three feet six inches :
- (3) Where any works of the Company are proposed to be executed over any manhole or entrance into any sewer of the local authority or so close to such manhole or entrance as to make the use dangerous or inconvenient the Company shall at their own expense if reasonably required by the local authority alter the position of such manhole or entrance in such manner as may be reasonably approved by the local authority or the local authority may after the refusal by the Company upon due notice to do so at the expense of the Company make such alteration in the position of such manhole or entry :
- (4) If before removing any mains pipes or apparatus under the provisions of the section whereof the marginal note is "As to removal of mains &c. after abandonment" the corporation give at least twenty-eight days' notice in writing to the Company requiring them to deposit with them the estimated cost of such removal and the Company fail to deposit the same such mains pipes and apparatus shall absolutely vest in the corporation :
- (5) The local authority shall not nor shall the road authority be responsible to the Company for any damage the Company may sustain by reason of their having to repair or relay the mains pipes wires or other apparatus or any portion thereof from time to time in consequence of the road subsiding after the construction or relaying of any sewer gas water or other pipes and apparatus has been completed and the ground above the same filled in Provided such work shall have been

A.D. 1903.

executed with all care and in a proper and workmanlike manner. The local authority or road authority in entering into contracts for any such work shall make it a term of any such contract that the contractors shall be bound under proper and sufficient penalties to maintain any portion of any road affected thereby for a reasonable period after the completion of any such work :

- (6) Notwithstanding anything contained in this Act the Company shall not at any time apply for any Provisional Order under the Electric Lighting Acts for power to supply electrical energy within the borough :
- (7) The provisions contained in the section of this Act the marginal note whereof is " For protection of Derbyshire and Staffordshire County Councils " shall extend and apply to and for the protection of the corporation and the borough as fully as though the same were expressly referred to in the said section and as if the corporation were substituted for the county council and the surveyor to the corporation for the county surveyor :
- (8) If and whenever the corporation shall have occasion owing to any subsidence in or under any road street or bridge within the borough in under or through which any main pipe wire or other work may be carried or laid by the Company to alter restore or raise such road street or bridge any alteration of such main pipe wire or other work that may in the opinion of the engineer of the corporation be necessary in connection therewith may and shall be made by the corporation at the expense of the Company :
- (9) The determination of the Board of Trade that the consent of the corporation to the Company supplying electrical energy within the borough has been unreasonably withheld shall in each case relate only to the particular supply in respect of which the consent of the corporation shall have been withheld and shall not be deemed to authorise the Company to supply electrical energy within the borough to any person other than the consumer to whose intended supply such determination shall relate :
- (10) If any difference shall arise between the Company and the corporation as to anything to be done or not to be done under this section the same shall be referred to an arbitrator to be appointed by the Board of Trade upon the application of either party.

90. For the protection of the mayor aldermen and burgesses of the borough of Stafford (in this section referred to as "the Stafford Corporation") the following provision shall unless otherwise agreed have effect (that is to say) :—

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For protec-
tion of cor-
poration of
Stafford.

The section of this Act the marginal note whereof is "For protection of Derbyshire and Staffordshire County Councils" shall extend and apply within the borough of Stafford as if the expressions "county council" and "county surveyor" respectively meant the Stafford Corporation and the Stafford borough surveyor.

91. For the protection of the mayor aldermen and burgesses of the borough of Wrexham (in this section called "the Wrexham Corporation") the following provisions shall unless otherwise agreed have effect (that is to say) :—

For protec-
tion of cor-
poration of
Wrexham.

The sections of this Act the marginal notes whereof are "For protection of corporations of Longton Burslem and Stoke-upon-Trent county borough of Hanley and urban district councils of Fenton and Tunstall" and "For protection of Derbyshire and Staffordshire County Councils" shall extend and apply within the borough of Wrexham as if the expressions "corporation" "county council" and "county surveyor" respectively meant the Wrexham Corporation and the Wrexham borough surveyor.

92. For the protection of the North Staffordshire Railway Company (in this section referred to as "the railway company") the following provisions shall apply :—

For protec-
tion of North
Staffordshire
Railway
Company
and Trent
and Mersey
Canal.

(1) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting repairs to or renewals of any cables wires mains pipes or other works by this Act authorised which may be or pass upon across under or adjoining or in any way affecting the railways canals works lands or property belonging to or used or occupied by the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the engineer of the railway company and in accordance with plans specifications and drawings previously submitted to and approved by the railway company in writing or in case any difference shall arise upon such plans drawings or specifications in accordance with such plans drawings and specifications as shall be determined by arbitration in manner hereinafter provided:

A.D. 1903:

- (2) All such works shall be done and carried out by and at the expense of the Company except as in this section otherwise provided :
- (3) The Company shall reinstate and make good to the reasonable satisfaction of the engineer of the railway company the roads over or under any bridges and over the approaches to any such bridge or over any level crossing of the railway company so far as the same may be disturbed or interfered with by or owing to any operations of the Company Provided always that if the railway company elect so to do where any cables wires mains pipes apparatus or other works require to be laid under or across their railway or canal they may themselves lay the same at the costs charges and expenses of the Company :
- (4) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to the railway canal or works lands or property of the railway company and so as to cause no interruption to the passage or conduct of traffic over the railway or canal or at to or from any station or wharf thereon :
- (5) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid to any part of the railway canal or works land or property of the railway company the Company shall make compensation to the railway company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided :
- (6) If the railway company at any time or times hereafter require of which they shall be the sole judges to construct any other or additional works upon their lands or railway or canal or to alter or repair their railway or canal or works connected therewith upon across under or over which any of the works of the Company may have been constructed or laid the railway company may on giving to the Company twenty-eight days' notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be sole judge then on giving as long a notice as possible divert support or carry the said works of the Company across over or under their lands railways canals or works at any other point or otherwise

deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works Provided that such works shall be done without unduly interfering with the supply of electrical energy and power-gas by the Company : A.D. 1903.

- (7) If the Company acquire the whole or any portion of the lands numbered 1 2 and 3 on the deposited plans in the parish of Stone Rural in the rural district of Stone in the county of Stafford or any other lands adjoining the railway or canal of the railway company they shall forthwith give notice in writing to the railway company of such acquisition and if within six months of the receipt of such notice the railway company by notice in writing delivered or sent by post to the secretary of the Company shall require the Company so to do they shall sell and convey to the railway company subject to the conditions under which the Company may have acquired the same (which conditions shall be notified to the railway company by the Company) such portion of the said lands not exceeding 50 feet as the railway company may require for future widening of their railway and the railway company shall pay for the same such proportion of the cost of acquiring the said lands by the Company as the area of the land required by the railway company shall bear to the total area to be acquired by the Company :
- (8) Any additional expense which the railway company may reasonably and properly incur in widening or altering their railway canal or works by reason of the existence of any electric lines of the Company across under or alongside the same shall on demand be paid by the Company :
- (9) If at any time any telegraph line of the railway company is injuriously affected by leakage from the Company's conductors or works connected therewith the Company shall pay the expense of all such alterations in the telegraphic line or signalling apparatus of the railway company as may be necessary to remedy such injurious affection such remedies and alterations to be effected at the expense of the Company by the railway company's electrical engineer for the time being :

A.D. 1903.

- (10) Any dispute or difference which may arise between the railway company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an arbitrator to be appointed by the Board of Trade on the application of either company.

For protec-
tion of Great
Western
Railway
Company.

93. For the protection of the Great Western Railway Company (hereinafter referred to as "the Great Western Company") the following provisions shall apply :—

- (1) Unless otherwise agreed between the Company and the Great Western Company the Company shall not lay or place any mains pipes or other apparatus in under over or along any bridges of the railways of the Great Western Company but the Company shall and may construct and thereafter maintain at their own expense such bridges culverts or other works requisite or necessary for carrying such mains pipes or apparatus across the railways works and property of the Great Western Company as may be reasonably required by the principal engineer of that company or in case of difference as may be determined by arbitration in the manner hereinafter provided :
- (2) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the works or renewals of any mains pipes or other works in the exercise of the powers contained in this Act upon across under adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the Great Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Great Western Company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the Great Western Company and only according to such plans and in such position and manner as shall be submitted to and as shall be previously reasonably approved by him in writing or in case of difference as may be determined by arbitration in the manner hereinafter provided :
- (3) All such works shall be done by and at the expense of the Company except as in this section otherwise provided who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any

bridge or over any level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company. Provided always that should the Great Western Company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Company : A.D. 1903.

- (4) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon :
- (5) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the leakage or failure of any such mains pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station land works or property of the Great Western Company the Company shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided :
- (6) The Company shall acquire only such an easement across over or under any of the railways works or property of the Great Western Company as may be necessary for constructing or maintaining any of the works of the Company and shall pay to the Great Western Company for any such easement to be acquired by them such sum either annual or otherwise as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement and for the purposes of such arbitration the easement so to be taken shall be deemed to be lands so far as respects the proceedings for the acquisition thereof and also for the purposes of such arbitration :
- (7) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or

A.D. 1903.

railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or laid the Great Western Company may on giving to the Company twenty-eight days' notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be the sole judge without notice divert support or carry the said works of the Company across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works Providing that such works shall be done without unduly interfering with the gas supply of the Company :

- (8) Except as in this section otherwise provided any dispute or difference which may arise between the Great Western Company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Company or either of them.

Powers of
Company
not to be
exercised in
county of
Flint except
in a certain
event.

94. Notwithstanding anything in this Act contained the Company shall not exercise any of the powers conferred upon them by this Act in the county of Flint until they have provided a generating station in that county.

PART VIII.

MISCELLANEOUS.

As to appli-
cation for
Provisional
Orders.

95. Nothing contained in this Act shall prevent the Company from applying and the Company may apply for Provisional Orders under the Electric Lighting Acts 1882 and 1888 :

Provided that if any Provisional Order is applied for by any local authority in the county of Flint for supplying energy within their district the Company shall not object to the granting thereof nor to provision being made therein for the taking over on fair terms by such local authority of any supply then given by the Company within such district except so far as may be necessary in

order to secure the insertion in such Order of clauses or amendments to protect their electric lines and works and with respect to any provision which may be contained in any such Order as to the taking over of any supply then given by the Company. A.D. 1903.

96. Whenever the Company make default in supplying electrical energy to any authorised undertaker or power-gas to any owner or occupier of premises to whom they may be and are required to supply electrical energy or power-gas in accordance with the foregoing provisions of this Act they shall be liable in respect of each default to a penalty not exceeding ten pounds in the case of electrical energy and forty shillings in the case of power-gas respectively for each day on which the default occurs : Penalty for failure to supply.

Provided that the penalties to be inflicted on the Company under this section shall not exceed in respect of any one default not being a wilful default on the part of the Company the sum of two hundred pounds And provided also that in no case shall any penalty be inflicted in respect of any default if the court are of opinion that the default was caused by inevitable accident or force majeure or was of so slight and unimportant a character as not materially to affect the value of the supply.

97.—(1) The Board of Trade at any time after the expiration of a period of ten years from the passing of this Act on the application of the Company or in the case of electrical energy on the application of any three or more authorised undertakers to whom electrical energy is supplied by the Company in bulk under this Act or of any twenty persons to whom electrical energy is otherwise supplied by the Company under this Act or in the case of power-gas on the application of any local authority within whose district a supply is given may revise the maximum prices contained in this Act. Revision of prices.

(2) The Board of Trade may if they think fit on the like applications make a similar revision at the expiration of a period of ten years from the date at which the last such revision has taken place.

(3) On any such revision the Board of Trade may modify the provisions of this Act as to price so far as may be necessary to carry out their decisions on the revision.

98.—(1) The Company shall keep full true and plain accounts of their receipts and expenditure in respect of the undertaking prepared in a form approved by the Board of Trade and shall at least once in every year cause to be prepared a true balance sheet Accounts and audit.

A.D. 1903. prepared in a form approved by the Board of Trade showing the capital assets property and liabilities of the Company and the said accounts and balance sheet shall in or within one month before each ordinary meeting be examined and audited in such manner and subject to such regulations as the Board of Trade may prescribe and shall be presented together with the report or certificate of the auditor to such ordinary meeting.

(2) A copy of the accounts and balance sheet for each financial year together with the report or certificate of the auditor shall within three months after the expiration of such year be forwarded by the Company to the council of each borough and of each urban or rural district wholly or partly situate within the district and any such council shall be entitled to make a representation with respect to such accounts or balance sheet to the Board of Trade and the Board may thereupon require the Company to make such alterations therein as they may deem necessary for the rectification thereof. The Company shall keep copies of such accounts and balance sheet at their office and sell the same to any applicant at a price not exceeding one shilling for each such copy. If the Company make default in complying with the provisions of this subsection they shall be liable to a penalty not exceeding forty shillings for each day during which such default continues.

Division of
surplus
profits.

99.—(1) If in any financial year the profits of the Company shall be more than sufficient to pay a dividend at the rate of ten pounds per centum per annum on the share capital for the time being of the Company one third of the surplus shall be applied in forming a reserve fund subject and according to the provisions hereinafter contained one third shall be applied in making a rateable reduction of the charges for gas and electrical energy supplied to consumers in the financial year in which the surplus is earned and the remaining one third of the surplus shall be paid as a dividend upon the share capital additional to the ten pounds per centum per annum above referred to but if and when such reserve fund shall amount to the sum of one hundred thousand pounds then the surplus profits shall be applied as to one half in reduction of the charges to consumers as aforesaid and as to the other half in payment of such additional dividend upon the share capital as is hereinbefore mentioned in making such reduction.

(2) The amount of reduction to which each consumer may be so entitled is in this section referred to as a rebate and any consumer who has paid his account for any financial year or any part of such year before the amount of his rebate is ascertained

may recover from the Company the amount of his rebate summarily or by action in any county court having jurisdiction in the district. A.D. 1903.

100.—(1) A reserve fund under this Act shall be formed by investing the moneys appropriated thereto and the resulting income of such investments in any securities in which trustees are for the time being empowered by law to invest trust moneys and accumulating the same at compound interest until the fund amounts to one hundred thousand pounds. Reserve fund.

(2) The reserve fund so formed shall be applicable to meet any deficiency at any time occurring in the income of the Company from the undertaking or to meet any extraordinary claim or demand at any time arising against the Company in respect of the undertaking and so that if the fund is at any time reduced below the sum of one hundred thousand pounds it may again be restored to that sum and so from time to time as often as such reduction happens.

(3) So long as the reserve fund amounts to or exceeds one hundred thousand pounds the resulting income thereof shall be applied to any of the general purposes of the Company to which the profits of the Company's undertaking are applicable.

101. The Company may erect and maintain upon the lands for the time being belonging to or leased by them cottages or dwelling-houses suitable for their officers workmen and servants. Dwelling-houses for employees.

102. The Company and the proprietors or trustees of any canal or navigation or other body or person may enter into and carry into effect contracts agreements and arrangements for and with respect to the supply of water to the Company for condensing and other purposes of their undertaking by any such proprietors trustees body or person. Agreements with regard to supply of water.

103. Any authorised distributor or person requiring a supply of electrical energy or power-gas shall give to the Company (if required to do so at any time during the continuance of the supply) security for the payment of all moneys which may become due to the Company in respect of the electrical energy or power-gas to be supplied to them under any contract and if such authorised distributor or person fails within seven days after being required in writing by the Company to do so to give such security or if the same has been insufficient or invalid the Company may discontinue to supply electrical energy or power-gas to such authorised Security to be given by consumers.

A.D. 1903. distributor or person so long as such failure continues Provided that where any such security is given by way of deposit the Company shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings deposited for every six months during which the same remains in their hands.

Map of area
of supply to
be made.

104.—(1) The Company shall forthwith after commencing to supply electrical energy or power-gas under this Act cause a map to be made of the area of supply and shall cause to be marked thereon the line and the depth below the surface of all their then existing mains and other underground works and shall once in every year cause that map to be duly corrected so as to show the then existing underground works The Company shall also if so required by the Board of Trade or the Postmaster-General cause to be made sections showing the level of all their existing mains and underground works The said map and sections shall be made on such scale or scales as the Board of Trade prescribe.

(2) Every map and section so made or corrected or a copy thereof marked with the date when it was so made or last corrected shall be kept by the Company at their principal office within the area of supply and shall at all reasonable times be open to the inspection of all applicants and those applicants may take copies of it or any part thereof The Company may demand and take from every such applicant such fee not exceeding one shilling for each inspection of the map section or copy and such further fee not exceeding five shillings for each copy of it or any part thereof taken by the applicant as they prescribe.

(3) The Company shall if required by the Board of Trade or the Postmaster-General or by any local authority in the area of supply supply to them or him free of charge a copy of any such map or section (but in the case of a local authority only so far as relates to the district of such authority) and cause that copy to be duly corrected so as to agree with the original or originals thereof as kept for the time being at the office of the Company.

(4) If the Company fail to comply with any of the requirements of this section they shall for each default be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding two pounds.

Recovery of
charges &c.

105. All charges rates and sums payable to the Company and all penalties under this Act or any byelaw made under this Act may be recovered either before a court of summary jurisdiction in manner provided by the Summary Jurisdiction Acts or by action

in any court of competent jurisdiction Provided that charges rates and sums other than penalties or costs recoverable along with penalties shall only be recoverable as civil debts. A.D. 1903.

106. The Company shall be answerable for all accidents damages and injuries happening through or resulting from the act or default of the Company their contractors or servants by reason of or in consequence of any of the Company's works and shall save harmless all corporations local authorities companies and persons their officers and servants from all damages and costs in respect of such accidents damages and injuries. Company to be responsible for all damages.

107. If within two years from the first day of January 1904 the Company have not substantially commenced their works for the purpose of carrying out their powers under this Act or if within four years after the said first day of January 1904 the Company have not provided a generating station or generating stations sufficient in the opinion of the Board of Trade and are not in a position to supply electrical energy therefrom or if within the period of seven years from the first day of January 1904 the Company have not provided an effective system of supply of power-gas within the district or limits of supply of any authority body or person lawfully supplying gas therein the Board of Trade may at any time thereafter upon the application of any authority body or person lawfully supplying gas or electrical energy within the area of supply and after hearing the parties order that any of the powers of the Company under this Act shall cease as to the whole or any part of the area of supply and on any such order being made all or any of those powers shall cease accordingly. Cesser of powers.

108. If owing to the abandonment of the undertaking or any part thereof any mains pipes wires or apparatus laid under the powers of this Act under any main road or any county bridge shall for the space of three years be disused and such disuser be proved to the satisfaction of the Board of Trade the said Board may if they think fit by order sanction the removal of such mains pipes wires or apparatus and the authority having the control of the said main road or county bridge (in this section referred to as "the road authority") may (subject however to any agreement between the road authority and the Company providing for the removal of such mains pipes wires or apparatus by the Company) forthwith remove the same with all reasonable care and the Company shall pay to the road authority the reasonable cost of such removal and of the reinstatement of the said road or bridge in which the same was laid and As to removal of mains &c. after abandonment.

A.D. 1903. if the Company fail to pay such cost within one month after the ascertainment of and application for the same the road authority may without any previous notice to the Company (but without prejudice to any other remedy which they may have for the recovery of the amount) sell and dispose of the materials of the mains pipes wires or apparatus so removed either by public auction or private sale and for such sum or sums and to such person or persons as they think fit and may out of the proceeds of such sale pay and reimburse themselves the reasonable cost of such removal and reinstatement of the said road or bridge and the cost of the sale and the balance (if any) of the proceeds of the sale shall be paid over by the road authority to the Company.

If any difference arise between the Company and the road authority under this section the same shall be settled by an arbitrator to be appointed by the Board of Trade on the application of either of the parties in difference.

Agreements. **109.** The Company and any authorised undertakers or any person to whom the Company are entitled to give a supply of electrical energy or power-gas may enter into and carry into effect contracts agreements and arrangements for and with respect to all or any of the following matters (that is to say) :—

The supply by the Company of electrical energy or power-gas plant fittings or materials :

The prices to be charged for and the terms and conditions of such supply :

The execution or exercise by any such undertakers or person on behalf of the Company or by the Company on behalf of such undertakers or person of any works in reference to the supply or use of electrical energy or power-gas within the area of supply.

As to payment of interest out of capital.

110. Notwithstanding anything in this Act or in any Act or Acts incorporated therewith contained the Company may out of any moneys by this Act authorised to be raised pay interest at such rate not exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him respectively from the respective times of such payments until the expiration of four years from the first day of January 1904 or such less period as the directors may determine subject to the following conditions (that is to say) :—

(A) No such interest shall begin to accrue until the Company shall have deposited with the Board of Trade a statutory

declaration by two of the directors and the secretary of the Company that five hundred thousand pounds at least of the share capital by this Act authorised has been actually issued and accepted and is held by shareholders who or whose executors administrators successors or assigns are legally liable for the same : A.D. 1903.

(B) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear :

(c) The aggregate amount to be so paid for interest shall not exceed sixty thousand pounds and the amount so paid shall not be deemed share capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one third of the amount paid for interest as aforesaid Provided nevertheless that such reduction shall apply only to the last portion of the moneys to be raised by borrowing as hereinbefore provided in this Act which portion shall be reduced accordingly to that extent :

(D) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares which may be issued by or on behalf of the Company prior to the expiration of the period for which such interest shall be payable under the provisions of this Act and in every certificate of shares :

(E) The half-yearly accounts of the Company shall show the amount of capital on which and the rate at which such interest has been paid in pursuance of this section.

Save as hereinbefore set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

111. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1903. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

LANDS FOR GENERATING OR POWER STATIONS.

(A) Certain lands containing $11\frac{1}{2}$ acres or thereabouts situate in the parish of Stone Rural in the rural district of Stone in the county of Stafford marked on the Ordnance map (scale $\frac{1}{2500}$ second edition 1901) numbered 1,737 1,745 1,746 bounded on the north-west by land belonging or reputed to belong to William Robert Parker-Jervis and numbered 1,736 and 1,738 on the said map on the south-east by White Bridge Lane leading from the Top Meaford Road to the Newcastle Road on the north-east in part by the North Staffordshire Railway and in part by land belonging to the North Staffordshire Railway Company and on the south-west by the Trent and Mersey Canal.

(B) Certain lands containing 2.968 acres or thereabouts situate at Acrefair in the parish of Cefn in the rural district of Wrexham in the county of Denbigh numbered 599 and 607 respectively on the Ordnance map (scale $\frac{1}{2500}$ second edition 1899) bounded on the north and north-west by a plot of land numbered 606 on the said map on the west and south-west by the Pont Cysyllte branch of the Great Western Railway on the south-east by the main road leading from Llangollen to Ruabon on the east by a reservoir and the land surrounding the same and forming part thereof numbered 598 on the said map and on the north-east by the Black Lion Road.

(C) Certain lands containing $5\frac{1}{2}$ acres or thereabouts in the parish and urban district of Stone in the county of Stafford belonging to the North Staffordshire Railway Company bounded on the south-east by the public footpath leading from the towing path of the Trent and Mersey Canal to the Station Road on the south-west partly by the Trent and Mersey Canal and partly by a fence enclosing the lock and weir of the said canal for a length of four chains or thereabouts from the before-mentioned footpath on the north-west by a hedge and fence separating the said lands from an adjoining field belonging or reputed to belong to John Joule and Sons Limited and on the north-east by an imaginary line drawn from a point in such last-mentioned hedge and fence at a distance of $13\frac{1}{2}$ chains or thereabouts from the Trent and Mersey Canal in a south-easterly direction to a point on the north-westerly side of the before-mentioned footpath at a distance of $2\frac{3}{4}$ chains or thereabouts from the said fence enclosing the lock and weir of the said canal and dividing the said lands from other land belonging to the North Staffordshire Railway Company.

A.D. 1903.

THE SECOND SCHEDULE.

MAXIMUM PRICES TO BE CHARGED IN RESPECT OF A SUPPLY OF ELECTRICAL ENERGY.

In this Schedule the expression "unit" shall mean the electrical energy contained in a current of 1,000 ampères flowing under an electric motive force of one volt during one hour.

The following are the maximum prices which the Company are entitled to charge per quarter :—

SECTION I.

(1) A standard charge for service at the rate of ten shillings per electrical horse power for the supply of which the Company is required to make provision; and

(2) In addition a charge for current determined by meter after transforming as follows :—

- (A) For the first 5,000 units consumed in any quarter at the rate of 3*d.* per unit ;
- (B) For all units consumed between 5,000 and 10,000 in any quarter at the rate of 2 $\frac{3}{4}$ *d.* per unit ;
- (C) For all units consumed between 10,000 and 20,000 in any quarter at the rate of 2 $\frac{1}{2}$ *d.* per unit ;
- (D) For all units consumed between 20,000 and 50,000 in any quarter at the rate of 2*d.* per unit ;
- (E) For all units consumed between 50,000 and 100,000 in any quarter at the rate of 1 $\frac{1}{2}$ *d.* per unit ;
- (F) For all units consumed between 100,000 and 200,000 in any quarter at the rate of 1*d.* per unit ;
- (G) Amounts over 200,000 units consumed in any quarter at the rate of $\frac{3}{4}$ *d.* per unit ; or alternatively.

SECTION II.

(1) For any quantity not exceeding the equivalent of one hundred hours of supply at the maximum power which has been demanded at the rate of fourpence per unit.

(2) For any further quantity exceeding the equivalent of one hundred and not exceeding two hundred hours of supply at such maximum power at the rate of twopence per unit.

(3) For any further supply exceeding the equivalent of two hundred hours of supply at such maximum power at the rate of one penny per unit.

A.D. 1903.

THE THIRD SCHEDULE.

AN AGREEMENT made the twenty-ninth day of April 1903 between the POWER-GAS CORPORATION LIMITED having its registered office at 39 Victoria Street Westminster (hereinafter called the Corporation) of the one part and JOHN STURGEON of 78 King Street Manchester engineer and WILLIAM EDWARD ROWCLIFFE of 37 Cross Street Manchester solicitor (hereinafter called the trustees) on behalf of a company to be incorporated as hereinafter mentioned of the other part.

WHEREAS the Corporation are the registered proprietors of certain letters patent for the United Kingdom :

And whereas a Bill is being promoted in the present session of Parliament to incorporate a company under the name of the North Western Electricity and Power-Gas Company (hereinafter called the New Company) with a share capital of £1,500,000 divided into 150,000 shares of £10 each for the purposes (among others) of manufacturing power-gas under the said patents or some of them and of supplying the same by means of mains and pipes for sale use or consumption in the district specified in the area of supply herein set forth and of using the said gas in gas engines or otherwise for the production of electricity or for any other purpose in the same district :

And whereas with a view to assisting the incorporation of the New Company the said John Sturgeon and the said William Edward Rowcliffe have requested the Corporation to enter into this agreement which the Corporation are willing to do for the considerations upon the terms and subject to the conditions hereinafter expressed :

Now therefore it is agreed as follows :—

1. When and so soon as (1) the New Company shall have been incorporated having a nominal capital of not less than £1,500,000 divided into 150,000 shares of £10 each and (2) shares in its capital of £10 each to the number of not less than 35,000 shall have been actually subscribed for by responsible persons and (3) the provisions hereof shall have become binding on the New Company as provided in clause 8 hereof the Corporation shall grant to the New Company and the New Company shall accept a licence to work and use the inventions the subject of the letters patent (short particulars whereof are set forth in the form of licence) in the district specified in the area of supply herein set forth and such licence shall be in the form initialled on behalf of the Corporation and by the trustees respectively.

2. The Corporation shall have the right of appointing one director of the New Company and on any vacancy from time to time in the office of any director so appointed to appoint another person in his place Such director shall not be required to be in possession of any shares of the New Company in his own right and a clause to provide for this shall be inserted in the said Bill.

3. From and after the date of this agreement up to the 31st day of December 1905 and thereafter if this agreement shall then have become legally binding on the New Company and so long as the licence hereby agreed to be granted continues in force the Corporation or their successors or assigns of the patents aforesaid shall not grant to any person or company a licence to use or exercise the said patents or inventions or any improvements thereof for the purpose of sale or distribution within the district described in the area of supply herein set forth of any gas manufactured under the said patents or any improvements thereof. A.D. 1903.

4. The consideration for the grant of the said licence shall in addition to certain other considerations expressed in this agreement and in the deed granting the said licence consist of the allotment to the Corporation or their successors or their respective nominees of 3,750 fully paid shares of £10 each in the capital of the New Company which shall be deemed for all purposes to have been fully paid up such allotment and issue to be made as follows:—

(A) The first 1,250 shares to be issued and allotted to the said Corporation or their successors or their respective nominees when the said licence is granted:

(B) As and whenever shares in the New Company in excess of 25,000 shall be issued and allotted (inclusive of the shares issued under this agreement) there shall be issued and allotted to the Corporation or their successors or their respective nominees further shares equal in nominal value to one-twentieth part of the said shares so issued in excess of 25,000 as aforesaid until 2,500 further paid-up shares (being the residue of the said 3,750 shares) shall have been so allotted and issued to the said Corporation or their successors or their respective nominees.

5. Contemporaneously with the grant of the said licence the New Company shall execute and deliver to the Corporation or their successors or assigns a counterpart thereof.

6. The expenses of the preparation of this agreement and of the said licence and the stamp duties payable thereon respectively shall be borne and paid by the New Company.

7. The said paid-up shares to be issued and allotted as aforesaid shall only carry dividend as from the allotment thereof respectively.

8. This agreement shall be scheduled to the said Bill and a clause shall be inserted therein confirming this agreement and making the same binding on the said New Company in the place of the said John Sturgeon and William Edward Rowcliffe who shall upon the said Bill receiving the Royal Assent be discharged from all liability hereunder and the New Company shall thereupon be deemed a party hereto in their place.

9. Unless before the 31st day of December 1905 (1) this agreement shall have become legally binding on the New Company and (2) at least £350,000 in shares of the New Company shall have been actually subscribed in manner hereinbefore mentioned the Corporation may by notice in writing to the trustees or their executors administrators or assigns annul this agreement and thereupon this agreement shall become void.

A.D. 1903. 10. This agreement is made subject to such alterations as Parliament may think fit to make therein.

AREA OF SUPPLY ABOVE REFERRED TO.

That portion of the county of Stafford lying north of the southern boundary lines of the rural districts of Tutbury Uttoxeter Stafford and Gnosall and inclusive of the above said districts together with that part of the county of Derby which lies to the north-west of the boundary between the unions of Chapel-en-le-Frith and Bakewell that portion of the county of Flint comprising the borough of Flint the urban districts of Buckley Connah's Quay Mold and Holywell and the rural districts of Holywell and Hawarden and that portion of the county of Denbigh comprising the borough and rural district of Wrexham.

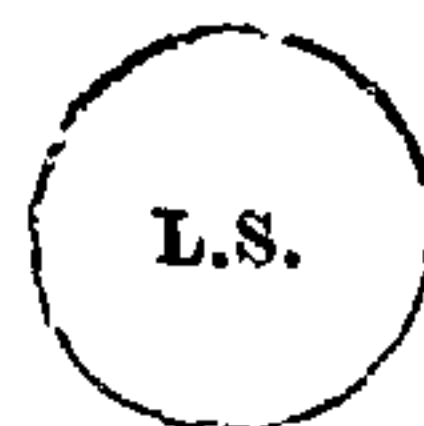
In witness whereof the Power-Gas Corporation Limited have caused their common seal to be hereunto affixed and the said John Sturgeon and William Edward Rowcliffe have hereunto set their hands and seals the day and year first above written.

The common seal of the Power-Gas Corporation Limited was hereunto affixed in the presence of
EMILE SCHWEICH
Director.
HERBERT BEDFORD
Secretary.



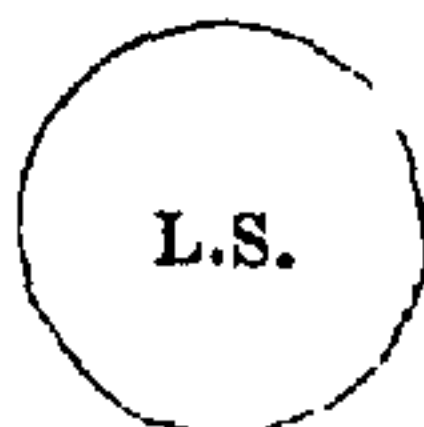
Signed sealed and delivered by the above-named John Sturgeon in the presence of
HARRY A. SOLOMON
37 Cross Street Manchester
Articled Clerk-at-Law.

JOHN STURGEON.



Signed sealed and delivered by the above-named William Edward Rowcliffe in the presence of
HARRY A. SOLOMON.

W. E. ROWCLIFFE.



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T. DIGBY FIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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